



Intellectual Property Law (6th edn)

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p. 1204 43. Geographical Indications of Origin

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Abstract

This chapter examines the *sui generis* protection of geographical indications (GIs) in the UK. It describes the historical origins of and justifications for such regimes, which developed around wine protection. It then describes the major international treaties in this area, while indicating the importance of bilateral agreements. Drawing on the Quality Schemes Regulation for agricultural products and foodstuffs, the chapter outlines the basic features of registration-based protection for wines, spirits, aromatised wines, and agricultural products and foodstuffs. It describes the two forms of protected signs: protected designations of origin (PDOs) and protected geographical indications (PGIs). The chapter concludes by looking at situations in which a registered name will be infringed (or misused), together with the scope of protection against infringement.

Keywords: agricultural products, geographical indication (GI), PDO, PGI, traditional foods, TRIPS, infringement, registration, evocation

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1 Introduction

As consumers, we are increasingly attentive to where our food comes from and how it is produced. Provenance matters since our collective consumption choices affect regional economic development, ecological sustainability, and the shortening (or lengthening) of global supply chains.¹ Geographical indications (GI) are signs which facilitate the signalling of this provenance. As a form of intellectual property, they protect the collectively generated brand value associated with traditional regional designations, such as Scotch for whisky, Champagne for sparkling wines, Darjeeling for tea, and Parmigiano Reggiano for cheese.

In ‘certain jurisdictions, GIs may be protected through a system that applies specifically and exclusively to them—a *sui generis* system of protection. Such systems establish a specific right ... over GIs, separate from a trade mark right or any other IP right.’² This chapter describes the operation of these *sui generis* regimes in the EU and the United Kingdom.

Article 22.1 of TRIPS defines a GI as a sign that identifies ‘a good as originating in the territory of a [WTO] Member, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin’. A GI therefore indicates a causal link between a product and place, where characteristic product features are influenced by local environmental factors and traditional production methods. This causal link is exemplified by the French notion of *terroir*, associated with wine production and where both the soil and the climate of a region are said to influence the distinctive quality of the final product.³ The origins of modern GI protection are traced to French legislative experimentation with wine protection across the late nineteenth and mid-twentieth centuries.⁴ These regimes were ↵ designed in response to rampant wine fraud, in the wake of the devastation caused by a Phylloxera epidemic and the subsequent rehabilitation of French vineyards in the latter part of the nineteenth century.⁵ As wine production began to recover, there was an urgent need to protect designations for authentic regional wines—reputed and valuable appellations such as Bordeaux—whilst identifying those who followed collectively validated production methods and were legitimately entitled to use these appellations. The early French (and Italian) regimes provided templates for unitary, pan-European protection.⁶ The EU model has in turn proved influential beyond its borders, both as the basis for discussions in multilateral fora and in shaping the provisions of free trade agreements with third countries.⁷ Since several countries across Asia as well as Africa have both economic as well as cultural reasons for promoting their regional products, *sui generis* protection regimes have been widely adopted.⁸ While this chapter focuses on such bespoke protection for GIs, it should be noted that protection additionally remains available under national unfair competition laws, including the tort of extended passing off which is directed at preventing misleading conduct.⁹ Furthermore, countries like the United States and Australia have historically advocated protecting GIs within trade mark law, as collective or certification marks.¹⁰

Before turning to the substantive rules, the continuing relevance of EU GI law for the United Kingdom must be acknowledged, since it features prominently in this chapter. First, the pre-existing constellation of EU Regulations protecting agricultural products, wines, aromatized wines, and spirits are now retained law under the European Union (Withdrawal) Act 2018.¹¹ Understanding their objectives and operational requirements continues to be necessary. Second, and relatedly, the emerging GI regime in Great Britain—used conventionally to refer to England, Wales, and Scotland—is largely modelled on the EU approach. Third, at the time of this edition, the Northern Ireland Protocol requires that the EU GI regimes continue to operate directly in Northern Ireland.¹²

Besides these pragmatic reasons, the EU approach remains relevant as an exemplar of registration-based *sui generis* GI protection, as a distinctive approach to the legal ↵ protection of signs. To some extent, this approach shares underlying rationales (consumer protection, preventing unfair competition) as well as architectural features (registration-based protection for signs that intersects with other IP rights) with trade mark law. However, the link between product and place serves as the basis for justifying enhanced protection. This chapter identifies both these similarities with trade mark law as well as differences, raising for debate whether certain extensions of protection are defensible.

2 International Protection

2.1 International Protection Before TRIPS

Unlike most other areas of domestic intellectual property law, GI protection in many jurisdictions crystallized only after the adoption of multilateral treaty obligations in the late nineteenth century.¹³ International treaties therefore have particular significance in shaping national or regional legislation in this field, including the regimes considered in this chapter.

2.1.1 The Paris Convention for the Protection of Industrial Property

The Paris Convention for the Protection of Industrial Property introduced limited protection for geographical signs. Article 1(2) recognizes indications of source (IS) or appellations of origin (AO) as protectable subject matter. The IS is not defined in the Paris Convention, but its content can be inferred from the prohibition against false indications. An IS—which is also known as an indication of provenance or as a simple or qualified indication of source—is the most general of the terms used to describe the geographical origin of a product. ‘Made in the Maldives’ or ‘Product of Peru’ would be examples. There is no necessary correlation between the characteristics or quality of a product and its place of origin. Instead, this sign simply informs consumers that the product bearing the sign originates in a particular place, region, or country.¹⁴

Regarding the scope of protection, Article 10(1), read in conjunction with Article 9, provides for the seizure of goods on import where there is ‘direct or indirect use of a false indication of the source of the goods’. The use of a false IS may also constitute an act of unfair competition covered by Article 10bis(2)(3), depending on the scope of national unfair competition laws. These treaty norms reflect the state of play in the late nineteenth century, by drawing on existing rules regulating origin marking.¹⁵ However, the underlying objective was to protect a valuable intangible—the reputation associated with geographical origin.¹⁶ Otherwise why else should a regime protecting ‘Made in ...’ signs be accommodated within an intellectual property treaty? During this period, rules preventing misleading origin marking existed across a diverse array of legal domains, including customs or tariff regulations, criminal laws prohibiting fraudulent marking, revenue laws, and nascent unfair competition regimes. To meet Paris Convention obligations, these existing laws were repurposed to achieve reputation-protection ends. This pragmatic adaptation continued in the Madrid Agreement for the Repression of False or Deceptive Indications of Source on Goods of 1891, which captured a broader range of false indications. By proscribing false origin marking these regimes could indirectly—and to a limited extent—achieve reputation-protection goals.

The limitations of protection under the Paris Convention soon became evident. Where unauthorized third parties would make a ‘qualified’ use of a reputed indication on similar products, such as Champagne-style wine or Californian Champagne, this was arguably *not* a false indication of geographical origin. However, such uses could eventually lead to the indication becoming a generic term for a type of product, regardless of provenance. These treaty provisions also did not regulate non-misleading uses which might otherwise free-ride off the goodwill of the region, such as use on dissimilar products; for example, Champagne being used to advertise sparkling mineral water or to sell high-end perfume. Then there were the enforcement hurdles. In several jurisdictions, complaints relating to misleading origin marks were channelled into criminal

prosecution pathways with high burdens of proof, or else representations had to be made to customs authorities to seize goods at national borders.¹⁷ State enforcement apparatus was cumbersome to activate. Geographical signs also proved difficult to incorporate within trade mark law, which otherwise provided private law remedies. Geographical signs describe the place where a product originates, as opposed to pinpointing a specific commercial source. Almost by definition, they fail to satisfy the mandatory distinctiveness requirement of trade mark law, especially because the ‘branding’ of these products reinforces the descriptive reference to geographical origin.¹⁸ Prior to the widespread adoption of collective and certification marks, GIs could not conveniently be accommodated within the logic of trade mark law, since the collective interest in use ran up against the default of individual ownership. Consequently, the legacy of the Paris arrangement was that, in many jurisdictions, so-called ‘negative protection’ was achieved via unfair competition regimes, where specific forms of misconduct by third parties—such as misleading or misappropriating uses of a sign—were prohibited on a case-by-case basis within each country.¹⁹ The associated expense of proving misrepresentation, the contingency of relief (turning on whether consumers were likely to be misled in overseas markets), and the territorial limitations of this approach reinforced calls for recognizing ‘positive’, formally recognized rights to use a geographical sign. The goal was a separate taxonomic existence within the classifications of international IP law.

2.1.2 The Lisbon Agreement

This independent identity was eventually established under the Lisbon Agreement for the Protection of Appellations of Origin and their International Registration of 1958, which introduced the appellation of origin (AO), derived from the French *appellation d’origine*, as a category of protected sign. The United Kingdom is not a member of the Agreement and international registrations cannot be extended here. In any event, the Agreement defines an AO as the ‘geographic name of a country, region, or locality, which serves to

p. 1208 ↵ designate a product originating therein, the quality or characteristics of which are due exclusively or essentially due to the geographical environment, including natural and human factors’.²⁰ It is evident that the link between the product’s quality or characteristics and its geographical environment is an essential prerequisite. The Lisbon Agreement was additionally significant in two principal ways: it established an international registration system for qualifying appellations and it set out substantive (high) standards of protection for registered appellations across its membership.

Article 1 of the Lisbon Agreement provides that member states must protect the AOs of other member states that are registered under the Agreement. For a name to be placed on the international register administered by WIPO,²¹ an AO must first be protected in its country of origin. An application for registration at WIPO can be made only by the relevant administrative agencies in the member states, who act on behalf of the group which is entitled to use the appellation. The appellation is published, and member states are notified of the registration. Upon notification, member states have 12 months in which to make a declaration that they are unable to protect the appellation. If no declaration is made, the member state must protect the appellation of origin, so long as it is protected in its country of origin.

The Lisbon Agreement requires member states to provide protection against a broad range of misuses, which can be analytically divided into (i) prohibiting misleading uses, (ii) preventing generic use, and (iii) proscribing so-called free riding on the reputation of an appellation. It is evident that besides protecting

consumer interests, the Lisbon Agreement also protects producers against misuse, even where consumers may not be deceived about the nature or origin of the product.²² Member states must offer protection against ‘any usurpation or imitation, even if the true origin of the product is indicated’ (e.g. ‘Spanish Champagne’) or if the appellation is translated or accompanied by terms such as ‘kind’, ‘type’, ‘make’, or ‘imitation’.²³ Importantly, once an appellation is validly registered, it is legally insulated from being found to be generic for a type of product in the future.²⁴

Over the intervening decades, the Lisbon Agreement attracted only a modest number of contracting parties, which presently stands at 30. A significant restriction was the requirement that appellations must be protected ‘as such’, under Article 1(2). Legal recognition ‘as such’ required prior recognition in the country of origin via an ‘official act’. While this included not just formal registration based on a product specification but also administrative decrees or court decisions, the official recognition would have to identify ‘the specific elements of the object of protection (the circle of lawful users of the appellation of origin, the nature of the product, the geographical area)’.²⁵ A clear preference for *sui generis* protection directed specifically at formally defined appellations ruled out those jurisdictions which protected collectively developed geographical brands via collective or certification marks, or those which opted for (unregistered) unfair competition protection.

p. 1209 To overcome these restrictions, the Lisbon Agreement was significantly amended to broaden its appeal, leading to a separate Geneva Act of 2015.²⁶ The objective of the revision process was to make the Lisbon system ‘more attractive for States and users [including intergovernmental organizations], while preserving the principles and objectives of the Lisbon Agreement’.²⁷ For proponents of strong international GI protection, the hope is that the Lisbon system might take the place of the global GI registration system that stalled under TRIPS.²⁸ In order to broaden the appeal of robust registration-based international GI protection, the Geneva Act contains a number of amendments, including (i) two parallel doorways into registration—a term may qualify for registration either as an appellation of origin or as a geographical indication in accordance with Article 22.1 of TRIPS;²⁹ (ii) the appellation definition has been modified to recognize indirect geographical terms (such as Feta for the Greek cheese in brine);³⁰ (iii) besides applying via a national competent authority, applicants can also directly apply to WIPO;³¹ (iv) the legal and institutional form of protection as well as the scope of protection have been clarified;³² and (v) the prohibition against subsequent generic use has been retained.³³ In a major development, the EU, as an intergovernmental organization, has joined the Geneva Act and this has the potential to introduce a sizeable portfolio of registered GIs into the Lisbon system.³⁴ It appears that the Geneva Act may prove attractive enough to further expand its appeal and membership beyond a predominantly European membership, with 50 parties having deposited instruments of accession to date.³⁵

2.2 TRIPS

Arguably the most important international treaty in this area, not least because of its broad membership, is the TRIPS Agreement of 1994.³⁶ As we saw earlier, GIs are defined in TRIPS as ‘indications, which identify a good as originating in the territory of a Member, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin’.³⁷ It should be noted that TRIPS applies to all products, and not only agricultural products or foodstuffs.

p. 1210 Under Article 22, all GIs benefit from a certain degree of protection against misleading uses. TRIPS prohibits the use of indications which mislead the public (Article 22.2(a)), or are false despite being literally true —consider haute couture from the runways of Paris, Texas (Article 22.4); or uses amounting to unfair competition, which of course depends on the menu of options available within the unfair competition law of any given jurisdiction (Article 22.2(b)); and trade marks consisting of GIs may be refused at the time of application, or invalidated after registration where they mislead the public (Article 22.3). A notable feature of TRIPS is that it provides for higher levels of protection for wines and spirits than for other agricultural products. In particular, Article 23 requires member states to provide protection even where the true origin of the goods is indicated, the geographical indication is used in translation, or is accompanied by expressions such as ‘kind’, ‘type’, ‘style’, ‘imitation’, or the like. It also requires member states to determine the status of homonymous names. Article 24 sets out certain exceptions; for example, there is no obligation to protect generic terms and certain prior good faith uses or prior trade marks can continue unimpeded.

Article 23(4) additionally provides that the TRIPS Council should undertake negotiations for the establishment of a multilateral system of notification and registration for wines. This was extended at the Doha Ministerial Conference to encompass spirits. Subsequent discussions at special sessions of the TRIPS Council produced very different visions of what this international register would look like. For instance, there were divergences on whether the register would have binding *erga omnes* legal effects in terms of notifying parties of prior rights in GIs, whether registration would create a rebuttable presumption of validity, and whether the register should accept all types of product.³⁸ Progress has subsequently stalled and there has been no meaningful movement on this topic. Proposals for extending the higher level of protection given to wines and spirits under Article 23 to all products has met a similar fate.³⁹ The reforms contained in the Geneva Act of the Lisbon Agreement, considered earlier in this chapter, should therefore be viewed against this backdrop. Lisbon is being projected as an alternative international registration system for all products, which will be protected in a manner approximating Article 23 upon registration.

2.3 Bilateral and Plurilateral Agreements

p. 1211 In the decades following TRIPS, the EU actively pursued a strategy of seeking greater international protection for its GIs through a series of bilateral agreements and these have largely been replaced with near identical agreements in the United Kingdom.⁴⁰ These agreements would usually offer improved access to the EU wine or spirits market in return for strengthening GI protection. More recently, the focus has shifted to GI chapters being included within comprehensive free trade agreements or economic partnerships. Prominent examples of the EU agreements which have been adopted by the United Kingdom in agreements with the CAIRFORUM nations, the SACUM nationals, South Korea, Central American and Andorean Countries, Singapore, Japan, and Canada.⁴¹ This expansionary trend is also resisted, with competing visions of international GI protection more closely aligned with trade mark principles being proposed in the bilateral and plurilateral context.⁴² The EU’s strategy is linked to the export value of GI-labelled products (whereas that for the United Kingdom is often less focused). Agri-food and drink products with protected designations represented a sales value of €74.8 billion in 2017 and over one-fifth of this amount resulted from exports outside the EU.⁴³ In the United Kingdom, a total of 86 products were registered under the EU schemes before December 2021 and GI products represent over £5 billion in export value annually, with products like Scotch whisky, Scottish farmed salmon, and Stilton cheese featuring prominently.⁴⁴

3 *Sui Generis* Registered Protection

3.1 Origins of the GI Regimes

As the Court of Justice has observed, the EU ‘progressively adopted, from the 1970s onwards, various measures governing ... the definition, description, presentation and labelling of certain types of products having appellations of origin or geographical indications, and the conditions governing the grant, protection and monitoring of the latter. The types of products currently concerned are wines, spirits, aromatised wines and other agricultural products and foodstuffs.’⁴⁵ Consequently, there are four regimes⁴⁶ presently regulating (i) agricultural products and foodstuffs, including beers (under the Quality Schemes Regulation);⁴⁷ (ii) wines (under the Wine Regulation);⁴⁸ (iii) aromatized wines (under the Aromatised Wine Regulation);⁴⁹ and (iv) spirits (under the Spirits Regulation).⁵⁰ For the purposes of this chapter, the principal focus will be on the Quality Schemes Regulation for agricultural products and foodstuffs, as it is the most broadly applicable regime and serves as the template for future expansions, including to non-agricultural products.

Three trends have contributed to the formation of these harmonized regimes, which grant unitary rights that are enforceable across the EU (including Northern Ireland) and which are largely replicated in Great Britain. First, several member states had pre-existing national regimes which regulated the use of origin labels. The question arose in the 1970s–1980s as to whether these regimes—in requiring specific conditions to be fulfilled, such as a domestic production requirement—operated as impermissible impediments to the free movement of goods.⁵¹ The Court of Justice confirmed that these national GI regimes were a potential impediment to the free movement of goods but they could be justified as permitted exceptions, based on their certification or guarantee functions which benefited consumers and prevented unfair competition.⁵² While the Court initially suggested that only those labelling regimes which verified an objective, *terroir*-style link to place were defensible, the protection of a valuable regional reputation was also recognized as an alternative basis for national systems.⁵³ Regulation (EEC) No. 2081/92, the original predecessor to the current Quality Schemes Regulation for agricultural products and foodstuffs, therefore begins by recognizing the diversity in national practices and the need for a uniform approach at the Community level, designed to remove variations amongst national regimes that were exposed to free movement challenges.⁵⁴ The second impetus for the introduction of an EU-wide regime has to do with changes to the EU’s Common Agricultural Policy.⁵⁵ In response to trade liberalization pressures from the World Trade Organization (WTO) and the withdrawal of direct subsidies to farmers, there was a corresponding shift in policy emphasis from quantity to quality, requiring a diversification of agricultural production. The EU GI regime for agricultural products is designed around the conviction that consumers are willing to pay premiums for such regional products,⁵⁶ which will help sustain employment in rural regions. The third driver of harmonization has to do with entrenching the status of GIs as a distinct, harmonized form of intellectual property, as opposed to an obscure mode of agricultural labelling regulation. We have already witnessed this impulse in the transition from the Paris Convention to the Lisbon Agreement in section 2 of this chapter. Today it is clear that GIs are a form of intellectual property. The Quality Schemes Regulation explicitly acknowledges, in its introductory recitals, Article 118 of the TFEU as one of its legislative bases. This Article mandates the creation of uniform

intellectual property rights across the EU to further internal market objectives. The Court of Justice has confirmed on several occasions that such signs are a recognized category of intellectual property.⁵⁷ So have several national courts, including the House of Lords.⁵⁸

The establishment of fully or exhaustively harmonized unitary rights at the EU level has pre-empted equivalent protection at the national level. Where a sign qualifies for protection under one of the harmonized EU GI regimes, national protection is no longer available.⁵⁹ This has been confirmed by the Court of Appeal, when it held that domestic passing off protection is not available for a sign which otherwise qualifies for EU-wide protection but has not, in fact, been registered.⁶⁰ Now that the United Kingdom had left the EU, this pre-emption rationale no longer applies to the United Kingdom, and products which qualify for registered GI protection but have not been registered should be able to avail of passing off. The Court of Justice has additionally confirmed that where a GI is protected via a bilateral agreement between two EU member states, the scope of protection prescribed under the agreement is no longer applicable; the only option is to register the GI under the relevant EU regime, to access protection under it.⁶¹ However, the harmonized Quality Schemes Regulation does not preclude member states from entering into bilateral agreements with non-member countries,⁶² or from protecting 'simple' (merely indicating product origin) or 'qualified' (where a product's reputation is loosely or subjectively associated with origin) geographical indications of source under national laws.⁶³

3.2 Policy Objectives and Justifications

p. 1214 There are several inter-related policy objectives which the GI Regulations seek to achieve. The Quality Schemes Regulation expressly states that designation protection supports the quality and diversity of agricultural production, which makes 'a major contribution to its living cultural and gastronomic heritage'.⁶⁴ Further, that as signs which allow 'identifiable specific characteristics, in particular those linked to their geographical origin' to be communicated to consumers, GIs help satisfy consumer demand for traditional products with an emphasis on quality⁶⁵ and by enabling producers to communicate specific provenance and product characteristics to consumers, whilst protecting them from unfair competition, this encourages the continued production of 'a diverse range of quality products' by ensuring those producers 'are rewarded fairly for their effort'.⁶⁶ Quality schemes therefore provide (market-based) rewards, incentivizing the continued production of a diverse range of quality products that can benefit the rural economy, including less favoured areas, and 'complement rural development policy ...'.⁶⁷

Geographical indications are thus envisioned as quality signs which communicate the value-adding attributes of products, based on their mode and place of production, thereby sustaining diversity. Their legal protection ensures 'the availability to consumers of reliable information' regarding product attributes and allowing them to make more informed purchasing decisions, guarantees 'fair competition for farmers and producers' of these products, and furthers 'respect for intellectual property rights'.⁶⁸ The Court of Justice has recognized the basis for GIs being intellectual property rights, as follows:

The applicable rules protect those entitled to use [GIs] against improper use of those designations by third parties seeking to profit from the reputation which they have acquired. They are intended to guarantee that the product bearing them comes from a specified geographical area and displays certain particular characteristics. They may enjoy a high reputation amongst consumers and constitute for producers who fulfil the conditions for using them an essential means of attracting custom. The reputation of designations of origin depends on their image in the minds of consumers. That image in turn depends essentially on particular characteristics and more generally on the quality of the product. It is on the latter, ultimately, that the product's reputation is based ... For consumers, the link between the reputation of the producers and the quality of the products also depends on [their] being assured that products sold under the designation of origin are authentic.⁶⁹

The product's reputation—as symbolized by the GI—is the valuable intangible being protected. Legal protection is granted in recognition of the effort taken to collectively establish this image and reputation,⁷⁰ while also catering to consumer interests in receiving accurate information.

This collective investment is considered to be distinct from the investment required to create a valuable commercial brand, represented by a trade mark. The 'purpose of geographical indications is to preserve traditional knowledge, cultural expressions and specific manufacturing skills'.⁷¹ The collective investment is therefore in how and where the product is made; this investment is worth rewarding for a range of 'public goods' that are associated with GI protection.⁷² For instance, GIs are seen as 'as key to ... protecting cultural, gastronomic and local heritage across the Union'.⁷³ This in turn is linked to tourism opportunities, with wine tourism being a prominent example.⁷⁴ There is also the potential for aligning GI production criteria, such as soil and landscape management practices or modes of irrigation, with initiatives that will promote ecological sustainability in supply chains.⁷⁵

These policy goals in turn shape the scope of protection which has been shaped by the Court of Justice in accordance with these objectives.⁷⁶ To the extent that *sui generis* GI regimes do more than just protect informational efficiency—which would largely require an effective certification process and legal protection against misleading uses—these supplementary justifications are mobilized to explain the increased regulatory thickness of GI regimes, as well as the greater scope of protection on offer.⁷⁷ It is therefore all the more important to conduct meaningful empirical assessments of whether GI protection actually delivers on these policy promises and under what conditions,⁷⁸ if these objectives are not to remain pious hopes and unfulfilled aspirations. Furthermore, careful attention should be paid to the design of a GI registration system, enabling it to assess the degree to which an application complies with the underlying policy objectives. For example, if a GI promises a defined region of origin and traditional, artisanal methods of production to consumers, but the product specification is flexible about where raw materials can be sourced and is silent about, or else actively permits, industrial production technology, the Registrar should be equipped to hold applicants to account.⁷⁹

p. 1216 3.3 Protected Signs for Specified Products

3.3.1 Types of Sign

Sui generis GI regimes protect geographical signs as their subject matter. The sign must convey the message that a specific product originates in a certain place (such as Café de Colombia). These regimes *do not* protect the underlying production methods. Thus ‘GIs are about what things can be called. They are about labelling, packaging and marketing. Nothing in GI rules prevents any producer anywhere from using the techniques specified as being associated with the GI name. But they may not use the name to communicate the production techniques they have used.’⁸⁰ While Champagne is a protected term in many jurisdictions, the *méthode champenoise* has been widely adopted by sparkling wine producers around the world. As for the types of signs envisaged, the international reference point in Article 22.1 of TRIPS refers broadly to indications. Besides geographical place names, this term includes symbols or figurative logos (such as the stylized Darjeeling tea picker profile or ducal crown for Parma ham); indirect geographical references (Basmati, Cava, Feta, or Tequila); and even the distinctive shapes of bottles or containers for these traditional regional products.⁸¹ Today, GI registration systems around the world recognize geographic terms (including entire country names or abbreviations of geographical names), indirect or non-literally geographic names, figurative elements, and other signifiers (such as shapes).⁸² For example, the Indian GI registry permits the registration of geographical logos as well as combined word and logo indications, in a manner similar to trade mark law.⁸³ However, the Quality Schemes Regulation admits only geographical words. This explains why associated logos are protected via collective or certification marks.⁸⁴ Consequently, the British GI registry also only recognizes (directly or indirectly) geographical product names.⁸⁵ This restriction may not matter so much in practice, since the scope of protection granted to words—and protection against evocation in particular—has (controversially) expanded to cover situations where the defendant’s use of an image or even a similar shape is enough to trigger a mental association with the protected word.⁸⁶

3.3.2 PDOs and PGIs

There are two types of GI that are recognized upon successful registration in Great Britain (and the EU)—the Protected Designation of Origin (PDO) and the Protected Geographical Indication (PGI). The Quality Schemes Regulation recognizes both types, as does the Wine Regulation (in Article 93). However, the Aromatised Wine Regulation recognizes only PGIs (in Article 2), and so does the Spirit Regulation (in Article 3(4)). Two other types of protected term are introduced here but are not developed any further, since they do not constitute recognized forms of intellectual property. The Traditional Speciality Guaranteed (TSG) label is granted to certain traditional recipes for foods.⁸⁷ ↵ This requires the identification of a traditional production method or traditional composition, using traditional ingredients, *without being necessarily linked to a specific geographical area*.⁸⁸ The formal definition of ‘traditional’ under this regime is noteworthy, since it requires ‘proven usage on the domestic market for a period that allows transmission between generations; this period is to be at least 30 years’.⁸⁹ Therefore TSGs may have the potential to satisfy international obligations to protect intangible cultural heritage.⁹⁰ However, the scheme remains underutilized and ‘has not after 30 years of existence delivered the expected benefits for producers and consumers’.⁹¹ Traditional terms for wines, by contrast, have very significant economic value. They must be used in conjunction with existing GIs and relate

to 'the production or ageing method or the quality, colour, type of place, or a particular event linked to the history of the product with a' PDO or PGI.⁹² Examples are Château (which must relate to an actual place and specific area around it) or Premier and Grand Cru (which relate to quality).⁹³

Returning to GIs, Article 5(1) of the Quality Schemes Regulation defines a PDO as the name of a region, a specific place, or, in exceptional cases, a country used to describe an agricultural product or foodstuff. To qualify for protection as a PDO, the named product must originate in the defined region, specific place, or country. It is necessary to show that the *quality or characteristics* of the named product are essentially or exclusively the result of a particular geographical environment, with its inherent natural and human factors. It is also necessary to show that the production steps all take place in the defined geographical area. Examples of PDOs from the United Kingdom which have been registered include Cornish clotted cream, West Country farmhouse Cheddar cheese, Jersey Royal potatoes, Shetland lamb, and Blue Stilton cheese. Other well-known PDOs include Roquefort cheese (France), Gorgonzola (Italy), Feta (Greece), Camembert de Normandie (France), Kalamata olives (Greece), Chianti Classico olive oil (Italy), and Prosciutto de Parma (Italy).

Article 5(2) defines a PGI as the name of a region, specific place, or, in exceptional cases, a country, used to describe an agricultural product or foodstuff. To qualify for protection, a geographical indication must originate in that region, specific place, or country. The product or foodstuff needs to possess a specific quality, *reputation*, or other characteristic attributable to that geographical origin and the production. It is also necessary to show that at least one of the production steps takes place in the defined geographical area. A number of different regional geographical product names have been registered as PGIs, including Cornish pasty, Rutland bitter, Whitstable oysters, Scottish beef, Welsh lamb, and Kentish ale.

Producers are now required to use specific PDOs and PGI logos on their products in Great Britain, to indicate that the term is protected (see Fig. 43.1) and different logos are used in Northern Ireland and the EU (see Fig. 43.2).⁹⁴ However, in Great Britain the logos are being phased in, with mandatory use being required on British products only from 1 January 2024.⁹⁵



Fig. 43.1 PDO and PGI logos in Great Britain

Source: [https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules#:~:text=There%20are%203%20UK%20GI, \(%20TSG%20\)%20%2D%20traditional%20speciality%20logo](https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules#:~:text=There%20are%203%20UK%20GI, (%20TSG%20)%20%2D%20traditional%20speciality%20logo) <[https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules#:~:text=There%20are%203%20UK%20GI, \(%20TSG%20\)%20%2D%20traditional%20speciality%20logo](https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules#:~:text=There%20are%203%20UK%20GI, (%20TSG%20)%20%2D%20traditional%20speciality%20logo)>



Fig. 43.2 PDO and PGI logos in the EU and Northern Ireland

Source: https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/quality-schemes-explained_en <https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/quality-schemes-explained_en>

One apparent puzzle is this: why have two entry points into the system of registered protection? Especially when PDOs and PGIs are entitled to an equally broad scope of protection? The answer lies in a political compromise between two different European legal approaches to protecting geographical signs on products in the early 1990s.⁹⁶ The PDO can be traced back to the influential French *appellation d'origine contrôlée* (AOC), based on the concept of *terroir*, which recognizes the intertwined influences of natural factors and human contributions upon the product. By contrast:

PGIs are essentially the transference into EU law of traditions of countries, such as the UK and Germany, which had not adopted a *sui generis* GI regime before 1992. Therefore, with different nuances, they used to protect [the valuable reputation associated with] geographical names mainly through the law of unfair competition, passing off and/or false advertising, i.e., systems based on the perception of consumers and on the need to ensure truth-telling in the market place.⁹⁷

To accommodate both approaches, two 'doorways' into the harmonized registration system were created in 1992, with equal treatment upon entry.

p. 1219 ↵ Nevertheless, the entry requirements are more demanding for the PDO, which is generally considered to require a stronger link to the region of origin than the PGI. As Lord Hoffmann put it: 'a PGI is similar to a PDO except that the causal link between the place of origin and the quality of the product may be a matter of reputation rather than verifiable fact.'⁹⁸ Another difference is that while all stages of the production of a PDO need to take place in the named geographic area, with a PGI it is only necessary for one production stage to take place in the eponymous region. The third significant difference flows from the second and relates to raw materials. The PGI permits raw materials to be sourced from outside the defined region while the PDO usually does not.⁹⁹ The room for manoeuvre that the PGI offers is often welcomed by producers.¹⁰⁰ There may be historic reasons for sourcing raw materials externally—in the case of Stilton cheese, milk quotas in the past led to a decline in local supplies—while for other products, such as Prosciutto di Parma, their growing popularity leads to increasing demand and the need to scale up inputs.¹⁰¹ This is one reason why the PGI has

been gradually increasing its lead over the PDO, as the preferred pathway into registered protection.¹⁰² Yet a *sui generis* registration system which permits looser linkages to the named region undermines its own credibility by diluting the value of the certification signal (guaranteeing origin) to consumers.¹⁰³

It is also noteworthy that reputation qualifies as an independently sufficient basis for linking a product to its region of origin and has been endorsed by the Court of Justice.¹⁰⁴ The Court did not disturb the Commission's conclusion that Bayerisches Bier (Bavarian Beer) qualified as a PGI on the basis of a reputational link to Bavaria which was, in part, derived from the Law on beer purity of 1516 ('Reinheitsgebot') as well as the traditional bottom-fermentation brewing method, both of which are of Bavarian origin. Yet when is a product's reputation 'essentially attributable' to its geographical origin? One approach involves drawing on historical sources and focusing on production techniques arising within a specific local context. As opposed to contemporary commercial reputation (the object of trade mark or unfair competition protection), a more GI-specific approach calls for the assessment of: (i) the product's contemporary reputation, which can demonstrate continuity with (ii) its historic reputation over time, attributable to specific or distinctive features of the product, and (iii) these features of the product in turn were causally attributable to natural or human factors specific—but not unique—to the region of origin.¹⁰⁵ The focus is on why the product has a reputation and how it came to be associated with that specific region. Without a coherent approach to reputation as a stand-alone basis for linking products to place, the GI approach runs the risk of collapsing into the trade mark approach of merely assessing whether a product currently has a reputation amongst consumers in the marketplace.

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3.3.3 Categories of Products

When it comes to products for which GIs can be registered, Article 22.1 of TRIPS refers broadly to goods. Nevertheless, national and regional protection systems have originated in the context of regulating specific economic sectors. Alluding to its origins within the CAP framework, the Quality Schemes Regulation is 'limited to the agricultural products intended for human consumption listed in Annex I to the Treaty [on the Functioning of the European Union] and to a list of products outside the scope of that Annex that are closely linked to agricultural production or to the rural economy'.¹⁰⁶ The Protected Food Names scheme in Great Britain continues this approach, with qualifying product classes including fresh meat and offal; meat products, including cooked, salted, or smoked products; products of animal origin including eggs, honey, and dairy products; oils and fats; fresh fish; beers; bread, pastries, and cakes etc.¹⁰⁷ Until recent administrative reforms, China previously had two independent GI regimes, one of which was reserved for agricultural products.¹⁰⁸ The United States and Australia have independent GI regimes for regulating wine labelling.¹⁰⁹ It is fair to say that wines, spirits, agricultural products, and foodstuffs feature most frequently as protected subject matter. In 2020, wines and spirits accounted for 56.1 per cent of GIs in force globally, while agricultural products and foodstuffs accounted for 38.6 per cent.¹¹⁰ However, newer GI regimes, including those with an interest in non-agricultural GIs such as crafts or textiles, are open to any type of product and have borrowed from trade mark law to facilitate this. India thus adopts the Nice Classification for goods, used for trade mark registration, where products are divided into 34 classes for administrative convenience.¹¹¹

Examiners rely on such classification systems when conducting a search to check whether a prior similar sign exists for a similar class of goods, which indicates there will be a conflict between the new application and a prior sign.

The categories of products recognized by a system have more than just administrative significance; they speak to its normative foundations. Wines are the archetype for the agricultural products template around which GI systems have developed. They form the conceptual core of GIs. These products are associated with a physical geography causal narrative: the soil and climate of a region distinctively influences the quality of the final product. This causal connection is what sets GIs apart as a category of signs. As we move from marble extracted from the ground, through grapes and olives grown in distinct regions, to cheeses, charcuterie, and eventually textiles and toys, is this physical geography link attenuated to the point of implausibility? Or do alternative or supplementary means, leaning more heavily on human contributions, connect products to place?¹¹² This also accounts for why TRIPS remains restricted to goods in Article 22, while trade mark law extends into services. Can services be ‘anchored’ to place in the same way that grapes, olives, or coffee plantations can be?

3.4 The Registration Process

3.4.1 The Application Process

Under the Quality Schemes Regulation,¹¹³ new applications for PDOs and PGIs are assessed at both the member state (substantively) and EU (formally) levels. Applications for registration may be made by groups of producers or processors. A ‘group’ is defined as ‘any association, irrespective of its legal form, mainly composed of producers or processors working with the same product’.¹¹⁴ Upon successful registration, the group’s role includes ensuring the quality and authenticity of the product, ensuring that users of the GI comply with the product specification, taking legal action to protect the GI, and developing promotional strategies around the product.¹¹⁵ Where a single individual or legal person is the only producer willing to submit an application and the defined geographical area possesses ‘characteristics which differ appreciably from those of neighbouring areas’, the individual will be treated as a group.¹¹⁶ Groups are only able to apply for registration in respect of agricultural products and foodstuffs that they ‘produce or obtain’.¹¹⁷ Special provisions are made for the fact that geographical areas may not coincide with geopolitical borders. Groups in different member states are able to lodge a joint application where the geographical area extends beyond state borders.¹¹⁸ There are three further points of interest in relation to the constitution of applicant groups. First, although there is no prescribed legal form for an applicant group, in some Southern European countries legally regulated groups tend to be applicants—*Consejos Reguladores* or *Órganos de Gestion* in Spain, *Consorti di Tutela* in Italy, and *Organisme de Défense et de Gestion* in France.¹¹⁹ Specific obligations, powers, and responsibilities are allocated to these groups as a matter of national law. Second, there is the matter of how representative of the entire product supply chain the applicant ought to be which varies.¹²⁰ Representativeness is seen as a check on regulatory capture of the product specification by interest groups within the supply chain; for example, preventing distillers or retailers having an unduly influential role in setting production standards. In the United Kingdom, the guidance is that all the known producers of the product should be contacted before making an application but there is no clear threshold on how many must

p. 1222 support the application.¹²¹ On the other hand, Italy requires producer groups to demonstrate a representativeness of at least 66 per cent of the main category of producers and users,¹²² while Swiss law requires that the group's membership must represent at least half the total volume of production concerned as well as be supported by more than 60 per cent of the operators involved.¹²³ Third, empirical research reveals that successful groups result in successful GIs. The extent to which democratic participation is enabled, knowledge-sharing is facilitated, a common vision around the product is forged, and responsive governance systems are designed has a significant impact on the sustainability of the GI.¹²⁴

These groups initially apply to the Department for Environment, Food and Rural Affairs (DEFRA).¹²⁵ It will first scrutinize the application for compliance with the substantive PDO or PGI requirements read in light of the product specification,¹²⁶ then publish it to invite oppositions and decide on the merit of any such oppositions.¹²⁷ Oppositions can be initiated by 'any natural or legal person having a legitimate interest'.¹²⁸ For instance, there may be an opposition where one producer feels unreasonably excluded by the boundary drawn around the authorized production region.¹²⁹ It should be noted that when the regime to protect agricultural GIs was first introduced in 1993, a name could be registered using one of two routes: either the normal registration process, or an accelerated (or simplified) process under Article 17 of Regulation (EEC) No. 2081/92. The latter was designed to transpose GIs that were already protected in member states onto the Community (now, EU) register. Under this simplified procedure, there was no opposition procedure and it proved to be remarkably successful, with several meat and cheese GIs being added via this route.¹³⁰

p. 1223 In relation to Northern Ireland and the EU, there is a second stage.¹³¹ If, after considering any oppositions, it is concluded that the application qualifies for protection, the final application should be published and the application dossier be lodged with the European Commission.¹³² The Commission then undertakes a formal examination of the application (for no more than six months) to determine whether it includes all of the necessary particulars.¹³³ If the name qualifies for protection, a summary of the application is published in the *Official Journal* of the European Union.¹³⁴ Upon publication, third parties have three months in which they are able to object to the registration.¹³⁵ The Commission then invites the parties to try to reach a solution. If no acceptable compromise is found, the Commission must decide the fate of the GI. If no valid objections are made to the proposed registration, the name of the group and the relevant inspection agency are entered into the e-Ambrosia Database of registered GIs, which is maintained by the Commission.¹³⁶ The Commission then publishes the registered names in the *Official Journal*. Once registered, the product name is automatically protected in all member states.

The GB GI register (and the EU register) is also open to applications from groups in third countries.¹³⁷ In relation to the EU, the application can be lodged directly with the Commission (or via the relevant authorities (GI registrars) in the third country). Registrations on the British GI database include Café de Costa Rica and Pinggu Da Tao peaches from China.

3.4.2 The Product Specification

An application for a PDO or PGI consists of a detailed product specification, along with an abbreviated 'single document' which contains the key details extracted from the product specification along with the contact details of the applicant group and details of the verification bodies that will check whether producers using

the GI comply with the specification.¹³⁸ The detailed product specification serves an important scope-defining purpose: '[The product] definition determines both the extent of the obligations to be complied with for the purposes of using the [GI] and, as a corollary, the extent of the right protected against third parties by the effect of registration of the [GI], which lays down ... the rules set out or referred to in the specification.'¹³⁹ It thus defines the qualifying requirements for those seeking to make legitimate use of the GI and excludes anyone else, who does not satisfy these criteria, from using it. One important aspect of the specification relates to identifying the control bodies and inspection systems that will ensure producers comply with the stipulated method of production.¹⁴⁰

p. 1224 ↺ Article 7(1) of the Regulation provides a non-exhaustive list of the information that needs to be included in a product specification.¹⁴¹ This includes:

- (a) the name to be protected as a designation of origin or geographical indication [of the agricultural product or foodstuff] as it is used, whether in trade or common language, and only in the languages which are or were historically used to describe the specific product in the defined geographical area;
- (b) a description of the product, including the raw materials, if appropriate, as well as the principal physical, chemical, microbiological, or organoleptic characteristics of the product;
- (c) the definition of the geographical area ...;
- (d) evidence that the product originates in the defined geographical area ...;
- (e) a description of the method of obtaining the product and, where appropriate, the authentic and unvarying local methods as well as information concerning packaging, if the applicant group so determines and gives sufficient product-specific justification as to why the packaging must take place in the limited geographical area to safeguard quality, to ensure the origin or ensure control ...;
- (f) details establishing the following:
 - (i) the link between the quality or characteristics of the product and the geographical environment ...; or
 - (ii) ... the link between a given quality, the reputation or other characteristics of the product and the geographical origin ...
- (g) the name and address of the authorities or, if available, the name and address of bodies verifying compliance with the provisions of the product specification.

There are three aspects of the specification which invite further scrutiny. First, according to Article 7(1)(a), the name being applied for must have been used in the language of the country of origin to describe the product originating in the defined region. From a trade mark perspective, this is the closest approximation to any form of distinctiveness requirement. It is implied that the selected name has 'acquired distinctiveness' for a type of product in the country of origin but no direct evidence need be submitted in this regard.¹⁴² For every truly famous GI that is registered, there are dozens of obscure ones which may not even be widely known in the country of origin. The product specification focuses on objectively establishing the link

between the product's characteristics and its region of origin; what the accompanying sign actually signifies to consumers is never directly assessed by the registration process.¹⁴³ Yet in relation to the scope of protection, registered GIs—even the obscure ones—are protected far more generously than even highly distinctive or reputed marks.¹⁴⁴

p. 1225 The second issue relates to whether registration confers protection over what might be called 'secondary uses' of an agricultural product: should grating, slicing, bottling, or packaging of products also be carried out in the region? This question was considered ↵ by the Court of Justice in the *Parma Ham*¹⁴⁵ and the *Ravil*¹⁴⁶ decisions. In both cases, the Court's starting point was to note that secondary activities carried out in relation to agricultural products have the potential to harm the quality and thus the reputation of the designation of origin. The Court accepted that the slicing and packaging of Parma ham, and the grating of Grana Padano cheese, had the potential to impact upon the quality of the final product. The Court also added that, in the absence of controls over these activities, consumers would have no guarantee of the quality of the product other than the word of the retailer. This might undermine the reputation of the protected name. The conclusion was that the requirement that secondary activities be carried out in the region was justifiable, so long as they were required to protect or preserve the quality of the agricultural product or foodstuff. However, given the possible restrictions on freedom of commerce, Article 7(1)(e) of the Quality Schemes Regulation presently requires applicants to justify why the packaging needs to take place in the geographical area to safeguard quality. Consequently, in *Black Forest Ham*, where the arguments in favour of restricting slicing and packaging within the region were of general applicability and not specific to the product, the Court suggested this is unlikely to be justifiable.¹⁴⁷ An application to amend the specification for Schwarzwälder Schinken, to restrict slicing and packaging to the region of origin, was justified by the applicant on the basis that it would (i) avoid the risk to product quality incurred by transportation, slicing, or packaging outside of that area; (ii) proximity would guarantee a greater efficiency of controls in that area; and (iii) ensure that product traceability, required by European legislation, is better ensured. However, this was not presented as requiring product-specific expertise. These arguments were equally true for any sliced ham, while the applicant's own criteria for slicing and packaging resembled those customary in the ham trade or else required by mandatory hygiene legislation. On remand, the amendment application was ultimately rejected by the Bundesgerichtshof.¹⁴⁸

As the *Black Forest Ham* case illustrates, amending a specification is possible under Article 53 of the Quality Schemes Regulation. This third aspect is noteworthy because product specifications *are* amended in practice.¹⁴⁹ This suggests that the tensions between committing to traditional methods of production and incorporating innovations relating to production methods might successfully be navigated. Geographical indication product specifications are also under pressure to adapt due to the changes wrought by climate change.¹⁵⁰ Place itself is changing. The extent to which an amendment is a permissible adaptation, or a step too far where it undermines the link to the region, is a question that will grow only more prominent in the future.

p. 1226 ↵ The GB register is very full despite being new because, under the Withdrawal Agreement, any EU-registered GIs protected in the EU on 31 December 2021 were automatically transferred to the UK register.¹⁵¹ Meanwhile, existing GIs originating in the United Kingdom but protected under EU schemes, such as Jersey Royal potatoes or Scotch beef, continue to be protected in the EU.

3.4.3 Grounds for Opposition and Cancellation

As we have seen, oppositions can be filed¹⁵² by any natural or legal person with a legitimate interest on the grounds set out in Article 10(1) of the Quality Schemes Regulation.¹⁵³ The grounds listed are as follows. First, under Article 10(1)(a), the conditions for qualifying as a GI, set out in Article 5 (the PDO and PGI definitions) and Article 7 (the product specification) are not met by the applicant. An example would be where there is no relevant link between the characteristics of the product and the defined region of origin, or (for a PDO) an important stage in the production process takes place outside the region. Second, under Article 10(1)(b), cross-referencing Article 6(2), where the proposed GI ‘conflicts with a name of a plant variety or an animal breed and is likely to mislead the consumer as to the true origin of the product’. A representative illustration would be the dispute between Italy and Australia over the status of Prosecco, with the former claiming it as a valuable GI and the latter arguing that it is a grape varietal name which should be freely available to wine producers outside Italy.¹⁵⁴ Third, under Article 10(1)(b), cross-referencing Article 6(3), where the proposed GI is wholly or partially homonymous with a prior registered GI, it shall not be registered unless ‘there is sufficient distinction in practice between the conditions of local and traditional usage and presentation of the [subsequent] homonym ... taking into account the need to ensure equitable treatment of the producers concerned and that consumers are not misled’. Where suitable labelling and qualified usage can prevent consumer confusion between the two names, coexistence may be possible and the registration permitted. Fourth, under Article 10(1)(b), cross-referencing Article 6(4), where there is a conflict with a prior trade mark. However only a certain class of conflicts is recognized under this ground, where three cumulative factors are present. The GI application will be unsuccessful ‘where, in the light of a trade mark’s reputation and renown and the length of time it has been used, registration of the name proposed as the designation of origin or geographical indication would be liable to mislead the consumer as to the true identity of the product’. Fifth, under Article 10(1)(c), another form of conflict with a seemingly lower qualifying threshold is recognized, where the proposed GI would jeopardize either ‘the existence of an entirely or partly identical name or of a trade mark’ or ‘the existence of products which have been legally on the market’, in each case for at least five years preceding the date of the publication. Thus, trade marks which pre-exist the GI by at least five years can constitute grounds for opposition. Finally, under Article 10(1)(d), where it is substantiated that the proposed GI is a generic term. Generic terms are defined in Article 3(6) as ‘the names of products which, although relating to the place, region or country where the product was originally produced or marketed, have become the common name of a product in the Union’. Generic status seemingly constitutes the basis for *ex officio* rejection under Article 6(1), thereby constituting both an absolute ground and a relative ground in trade mark terminology.

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Generic usage is fatal to GI status, since it eviscerates the link to a specific geographical region where the product originated. A name is generic where it designates the product *as such* without, in the view of the public, involving any reference to the geographic origin of the product.¹⁵⁵ On this basis, names such as Cheddar, Brie, Camembert, Edam, Emmentaler, and Gouda would be generic and thus unregistrable.¹⁵⁶ While generic names are unregistrable, it is possible to register a geographical name that incorporates a generic name. For example, West Country farmhouse Cheddar cheese has been registered as a PDO.¹⁵⁷ It should be noted that the tipping point or threshold for generic status has been established in a manner which favours retaining GI status. Generic status is achieved ‘only when there is in the relevant territory no significant part of the public concerned that still considers the indication as a geographical indication’.¹⁵⁸ Even a significant

minority of the relevant public who continue to recognize the geographical significance of the term will be sufficient to sustain it. A range of factors will be taken into account when deciding the essentially evidential question of whether a name has become generic.¹⁵⁹ These include the situation in the country in which the name originates and the areas in which the product is consumed,¹⁶⁰ and relevant laws, as well as how the product is viewed by consumers.¹⁶¹ Categories of evidence include: (i) direct (surveys) as well as circumstantial evidence (uses on product labels) of consumer understanding; (ii) trade usage; (iii) expert opinion; (iv) market conditions; (v) classification of the contested term in legislation or administrative rules; and (vi) the (in)actions of rights holders themselves. Once a name is registered, it cannot become generic.¹⁶²

Finally, the Quality Schemes Regulation identifies the conditions under which the Commission is given power to cancel a registration, where ‘compliance with the conditions of the specifications is not ensured’ or no product under the PDO or PGI has been placed on the market for at least seven years.¹⁶³ However, in practice, ‘this tool is scarcely used and at present a certain number of GIs continue to be registered, despite not being used in the market’.¹⁶⁴

3.4.4 Rights Conferred

Once a PDO or PGI is registered, the protected name—for example, Roquefort—‘may be used by any operator marketing a product conforming to the corresponding specification’.¹⁶⁵ This includes producers who are not part of the original applicant group.¹⁶⁶ The right to use is complemented by rights to exclude others who use identical or similar signs, considered in section 3.5 of this chapter. Legitimate users of the GI are also obliged to use the PDO or PGI logo (Fig. 43.1). This is mandatory for products originating in Great Britain (or, under its scheme, the EU),¹⁶⁷ primarily to ensure greater consumer awareness of the certification functions of the scheme. If most consumers do not understand the logos, the specific origin and quality guarantees they represent are meaningless.¹⁶⁸ With Great Britain now adopting its own distinct logos for national GIs (Fig. 43.2), this lesson should be borne in mind.

3.5 Scope of Protection

3.5.1 General Approach

Once registered, PDOs and PGIs are granted extremely—some would argue, excessively—broad protection under Article 13. The following principles have emerged from the case law of the Court of Justice:

- (i) To begin with, there is interpretative cross-fertilization across the various GI regimes. The Court has recognized that the suite of GI Regulations for agricultural products and foodstuffs, wines, spirits and aromatized wines have evolved in parallel, serving similar objectives and containing similarly worded infringement provisions. The approach to interpreting a provision under one regime (say wines) is relevant when interpreting an analogous provision in another regime (such as foodstuffs or spirits) to ensure consistency.¹⁶⁹
- (ii)

The Court has repeatedly underlined the fact that the scope of protection across the various GI regimes is *broad or wide*, to enable these signs to fulfil their communicative functions. In *Champagner Sorbet*, the Court confirmed that GI protection for wines is ‘particularly broad’,¹⁷⁰ while one of the objectives underlying the protection of agricultural products ‘is to ensure a high level of protection’.¹⁷¹ Advocates General have observed on several occasions that the protection granted to GIs is ‘wide’ or ‘broad’.¹⁷²

- p. 1229 (iii) ↵ Strong protection is in turn justified by the underlying policy objectives of the GI regimes. This includes the certification guarantee function—of both regional provenance and associated characteristics—directed at consumers, the reward to producers for their efforts in sustaining traditional products, and the prevention of unfair competition by unauthorized third parties.¹⁷³
- (iv) The valuable reputation arising from these efforts constitutes the basis for recognizing GIs as a form of intellectual property. The Court has confirmed that the ‘applicable rules [for GIs] protect those entitled to use them against improper use of those designations by third parties seeking to profit from the reputation which they have acquired’.¹⁷⁴ Consequently, besides consumer protection, preventing misappropriation of the GI’s reputation is an independent basis for an infringement claim. The Court has distinguished between misuses ‘liable to mislead the public as to the origin of the product’ and—separately—those which ‘enable the trader to take unfair advantage of the reputation of the geographical indication or denomination concerned’.¹⁷⁵ Taking unfair advantage is actionable even in situations where no consumers are misled, but a valuable reputation has been misappropriated.¹⁷⁶
- (v) Significantly, there are very few express defences for third parties to avail of.¹⁷⁷ Modulating the scope of the infringement provisions becomes even more important, such that the interests of GI producers should be balanced against the interests of competitors, other traders, and competitive markets more generally.
- (vi) Unlike trade marks and other IP rights, EU member states are additionally obliged to protect GIs through public enforcement, usually by way of administrative sanctions. An important policy objective is to protect traditional producers, often from rural regions, who lack resources for this purpose.¹⁷⁸ This obligation has continued in the retained legislation.

There is a catalogue of administrative enforcement options for GIs in the United Kingdom, provided public authorities can be convinced to act, or choose to act of their own accord.¹⁷⁹ These include the full suite of infringement options under Article 13(1) of the Quality Schemes Regulation. However, in response to infringement, private or civil enforcement options in the past have been restricted to the tort of passing off.¹⁸⁰ Yet passing off remains resolutely anchored in misrepresentation prevention, while evocation strays far beyond this norm, as we will see shortly. The unresolved puzzle is this: how is the prevention of evocation to be enforced privately in the United Kingdom?¹⁸¹

p. 1230 3.5.2 Heads of Infringement

One of the defining characteristics of the Quality Schemes Regulation is that there is no ‘owner’ who would otherwise initiate litigation; rather, anyone who complies with the specification is eligible to use the name. Applicant groups are entitled to sue to protect a registered name.¹⁸² Individual producers legitimately using a

registered name may also be able to sue to prevent abuses, depending on the national procedural context.¹⁸³ Regarding the distinct heads of infringement, the schema within Article 13(1) has been described as a ‘graduated list’ of prohibited conduct, whereby the unauthorized marketing of a product accompanied by an explicit or implicit reference to the protected GI is ‘liable to mislead the public as to the origin of the product or, at the very least, to set in train in the mind of the public an association of ideas regarding that origin, or to enable the trader to take unfair advantage of the reputation’.¹⁸⁴ The graduation refers to prohibiting progressively more indirect or oblique references to the protected term.¹⁸⁵

Article 13(1)(a) prohibits any direct or indirect commercial use of the protected term in two situations: either where it is used on products not covered by the registration but comparable to them, or where the third party’s use exploits the reputation of the protected term, including when GI products are used as ingredients by the third party. The following requirements have been identified:

- (i) the legislative wording requires the unauthorized use to be commercial.
- (ii) Direct or indirect refers to *where* the unauthorized use appears: ‘Unlike “direct” use, which implies that the [GI] is affixed directly to the product concerned or its packaging, “indirect” use requires the indication to feature in supplementary marketing or information sources, such as an advertisement for that product or documents relating to it.’¹⁸⁶
- (iii) ‘Use of a registered name’ requires the use must be identical or very similar. The ‘sign at issue [must] make use of the [GI] itself, in the form in which that indication was registered or, at least, in a form with such close links to it, in visual and/or phonetic terms, that the sign at issue clearly cannot be dissociated from it’.¹⁸⁷ An example of a sign which was too dissimilar to qualify is Champanillo, when compared to Champagne.¹⁸⁸ However, the protected sign need not be used by the defendant in isolation. It can be used as part of a broader sign, including where a trade mark contains the GI, or its translation.¹⁸⁹
- (iv) As regards products which are comparable to those in the specification, they will ‘have common objective characteristics and which are consumed, from the point of view of the relevant public, on occasions which are largely identical. Furthermore, they are frequently distributed through the same channels and subject to similar marketing rules.’¹⁹⁰ Non-comparable products will not satisfy these criteria.
- (v) The exploitation of reputation is synonymous with taking unfair or undue advantage of that reputation.¹⁹¹ This is significant because this is not a prohibition against *any* advantage-taking by the defendant. If a convincing justification is advanced, any ensuing advantage will not be unfair.
- (vi) Such a balancing of interests must be engaged in when assessing the use of GI products as ingredients by third parties, such as an oven-ready pizza manufacturer advertising a PDO cheese topping. Has enough been used to justify the reference? Where a supermarket sold ‘Champagne sorbet’ containing 12 per cent of genuine Champagne, the producer association argued this direct reference would take advantage of the reputation of the famous French sparkling wine. However, the Court favoured a reasonable degree of latitude when referencing a GI on product packaging, where it was genuinely used as an ingredient.¹⁹² While there was clearly an *advantage* for the supermarket, this would only be *unfair* if the sorbet did not have, as one of its essential characteristics, a taste attributable primarily to the presence of Champagne.

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Article 13(1)(b) prohibits any ‘misuse, imitation or evocation’, even where the defendant’s use is qualified by indicating the true origin of the product (German Feta), the use is in translation (Parmesan for Parmigiano), or other qualifications such as ‘style’ or ‘type’ are used. The prohibition once again covers situations where GIs are used as ingredients in another product. One key difference between Article 13(1)(a) and (b) is that the latter applies where the defendant does not directly use the protected term but instead suggests ‘it in such a way that it causes the consumer to establish a sufficiently close connection with that name’.¹⁹³ If the former provision applies to near-identical uses, the latter applies to similar signs, very broadly construed. It is also now evident that, in keeping with the literal text of the provision, infringement extends to preventing the unauthorized use of GIs on services. Where Champagne producers objected to Champanillo being used as a trade name for bars and catering services, this was actionable, notwithstanding the rebuttal that there needs to be some form of nexus between the claimant’s and defendant’s products for image transference to take place. Admittedly the bar services were not comparable to sparkling wines as a product. Yet while some degree of product similarity would help establish a mental connection between the signs, it was not a mandatory prerequisite for infringement.¹⁹⁴

p. 1232 Over a series of decisions by the Court, the scope of evocation has been broadened to such an extent that it has overtaken the already-generous unfair advantage prohibition in trade mark law.¹⁹⁵ Both prohibitions share a common rationale—preventing the unfair exploitation of a product’s reputation. Thus there ‘can be “evocation” even in the absence of any likelihood of confusion between the products concerned ... since what matters is [preventing ...] in the mind of the public an association of ideas regarding the origin of the products, and that a trader does not take undue advantage of the reputation of ↵ the protected geographical indication’.¹⁹⁶ Evocation is thus a bringing-to-mind test. The ‘decisive criterion is whether, when the consumer is confronted with a disputed designation, the image triggered directly in his or her mind is that of the product covered by the [GI]’.¹⁹⁷ The assumption is that one sign bringing another to mind is sufficient to constitute misappropriation of the protected GI’s reputation. This assumption is contestable because no reputation for the protected term need ever be established, as a precondition; obscure GIs are protected to the same generous extent as famous ones;¹⁹⁸ and we constantly rely on mental associations to make sense of the world around us.¹⁹⁹ A spreading network of mental associations is central to how we communicate, as a way of making sense of new information by associating it with things we already know.²⁰⁰ If our default cognitive setting is to associate, a form of infringement which deems mental associations impermissible, in the absence of any meaningful harm, is difficult to justify, especially where it impedes the actions of other traders and trade mark owners.

Against the backdrop of this concern, the Court has introduced the requirement of a ‘sufficiently clear and direct link’ between the allegedly infringing sign and the protected GI.²⁰¹ The defendant’s use must be ‘capable of triggering *directly* in the consumer’s mind the products whose names are registered’.²⁰² A looser requirement of ‘some kind of association with the protected geographical indication or the geographical area relating thereto’ would not be sufficiently direct and lack legal certainty, unreasonably inhibiting the actions of other traders.²⁰³ This leads on to the question of from whose perspective the mental association is to be judged. In *Glen Buchenbach*, the Court reasoned that notwithstanding the defendant’s argument that the contested term would be perceived as a play on words by German consumers—the whisky was produced in Berglen, located in the Buchenbach valley in Swabia—the vantage point for assessment was the average European consumer.²⁰⁴ The risk remained that consumers in other member states could associate ‘Glen’ with

Scotland and Scotch. Therefore, factors influencing consumer perception and likely to prevent evocation in one member state—such as localized small-scale production, the use of the defendant’s own trade name, and the actual place of origin being clearly indicated on the label, as well as no deception being likely—cannot excuse the defendant, since the vantage point is the hypothetical European consumer.²⁰⁵ Curiously enough, the hypothetical average European consumer can be conveniently abandoned in favour of identifying pockets of consumers more susceptible to evocation claims; more specifically, those from the country in which the GI originates. Thus ‘evocation assessed by reference to the consumers of a single Member State [may be] sufficient to trigger’ protection, which includes consumers where the GI product is ‘made or mainly consumed’.²⁰⁶ The most susceptible sub-group of European consumers, equipped with the knowledge of local geographical features and cultural references, can be cherry-picked as the target audience, undermining the average European consumer vantage point. However, some outer limits to evocation have been established. The registration for PORT CHARLOTTE whisky as a trade mark was opposed by the right holders for the PDO Port. Interestingly, the Advocate-General (for) and the Court of Justice (against) parted ways on the issue of evocation.²⁰⁷ The Court ultimately rejected the evocation claim, agreeing with the decision under appeal: ‘the sign PORT CHARLOTTE, read as a whole as a logical and conceptual unit, will be understood by the relevant public as designating a harbour named after a person called Charlotte, with no direct link being made with the designation of origin “[P]orto” or “[P]ort” or a port wine.’²⁰⁸ The trade mark would not evoke Port wine, since its train of mental associations led away from the PDO, while the underlying products (whisky and fortified wine) were sufficiently different to further reduce any mental association.

In terms of the circumstantial factors which help to establish evocation, there is no requirement for consumer confusion, since the claim targets free riding.²⁰⁹ The Court has also identified the visual and aural/phonetic similarity between the signs as relevant factors.²¹⁰ Mirroring the approach under trade mark law, it is pertinent to consider whether the two signs share a common beginning or ending, or the same number of letters or syllables. The defendant’s intention to allude to the protected GI (e.g. as evidenced by its advertising materials), such that the similarity is ‘not fortuitous’, is also relevant but not a necessary ingredient.²¹¹ The degree of similarity between the two parties’ products—including the actual physical appearance, ingredients, and taste—or conversely, their dissimilarity, can influence evocation.²¹² Conceptual similarity between the signs also supports a finding of evocation. In a challenge to Germany’s permissiveness towards the domestic production of hard, grated cheese labelled Parmesan, regardless of whether this was a direct translation of Parmigiano Reggiano it was held to be an impermissible evocation based on ‘the conceptual proximity between those two terms emanating from different languages’.²¹³ Here, the evocation was also supported by visual and phonetic similarities. By contrast, in *Glen Buchenbach*, the question was whether the defendant’s eponymous German whisky evoked Scotch, notwithstanding the complete absence of visual or phonetic similarity. The Court concluded these were not essential requirements and conceptual proximity per se could be sufficient to trigger an image of the product protected by the GI.²¹⁴ This reasoning was expanded in *Queso Manchego*, which involved an image-to-word comparison. The defendant, a Spanish cheese producer based in the La Mancha region, where the protected PDO Queso Manchego is also produced, used labels that depicted ‘a character resembling Don Quixote de La Mancha, a bony horse and landscapes with windmills and sheep’.²¹⁵ The Court held that the national court should cumulatively assess all the elements of the packaging, including words or figurative signs taken together, to see if they are evocative,²¹⁶ and, in principle, evocation via figurative elements alone was possible on the basis of conceptual

proximity.²¹⁷ On the former point, while a contextual assessment favouring evocation is permissible, contextual factors such as clarifications on the label which differentiate the defendant's product, leading away from the GI's country of origin, *cannot* be taken into account.²¹⁸ Unlike trade mark infringement, the contextual assessment ratchet works only in a pro-claimant direction. On the latter point, the reader is invited to consider the chain of associations involved in this claim of conceptual 'proximity'. The visual imagery on the packaging evoked literary allusions which in turn referenced a specific geographical region that is associated with the traditional cheese that goes by the protected name Queso Manchego. Consider then the position of a trade mark attorney conducting a clearance search for prior rights, via the GI register; all they will find is the words 'Queso Manchego'. The ability of the GI register to effectively inform third parties of relevant prior rights is severely undermined when the scope of those rights expands beyond any reasonable correlation with the actual words that are registered.²¹⁹ Legal certainty is an immediate casualty.

With a word-for-word comparison no longer necessary, the next step—perhaps the final frontier—is whether the appearance of the defendant's product, or one of its characteristics, can evoke the protected GI. This is the point at which GI protection enters the province of patent law, indirectly protecting product features relating to the underlying production process. The issue was raised—but not decided—in *Morbier*, involving a cheese produced as a flattened cylinder from raw cow's milk, in the Jura mountains in France.²²⁰ The cheese has a central black seam which originated in the traditional process of covering curd with ash (now vegetal charcoal) overnight to protect it, before adding the first milk of the following morning above that. The defendant had been producing cheese marketed as Morbier since 1979 but fell outside the GI region established in 2000. After name usage ceased, the dispute primarily focused on whether reproducing a characteristic feature of the cheese—the central black seam—would mislead consumers as to the true origin of the product. However, Advocate-General Pitruzzella suggested this might also constitute evocation in 'exceptional cases', as a form of conceptual proximity.²²¹ One such specific situation was where the GI name itself referenced the product shape, with the example being provided of the PGI Queso Tetilla for conical or breast-shaped cheese.²²² More generally, three cumulative conditions, applicable in exceptional circumstances, were identified for evocation involving the shape or appearance of a product:²²³ first, the element reproduced needed to be indicated as a distinctive characteristic of the product in the GI specification; second, that element should not be functional, or 'intrinsically linked to a production process which ... must remain freely available for use by any producer'; and third, the reproduced element should be considered as part of the global analysis of evocation factors, including an intention to take advantage of a protected GI name. The Court did not address evocation and even the Advocate-General's analysis is restricted to exceptional cases. Nevertheless, it should be noted that under this approach, the characteristic features being claimed are not required to prove the equivalent of acquired distinctiveness (here, independently communicating a specific geographic origin),²²⁴ mentioning them as traditional features in the specification seems sufficient. The potential to thwart the otherwise lawful circulation of production methods is self-evident. Consider the fate of Prosecco and Cava if Champagne producers had successfully argued that its characteristic effervescence or colour was being evoked by those comparable products.

Continuing with the theme of increasingly indirect references, Article 13(1)(c) prohibits 'any other false or misleading indication as to the provenance, origin, nature or essential qualities of the product' used on the defendant's packaging, advertising material, accompanying documents, or product container. It is evident from the literal wording that an indication can be misleading in relation to either the geographical origin of

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the product or else its nature or essential qualities (such as taste).²²⁵ Despite the provision containing a list of mediums on which misleading indications can be found, the contextual material around the disputed element, including an indication of the true origin of the product, is *not* relevant when assessing whether the element is misleading, because it would deprive the provision of ‘practical effect’.²²⁶ The Court’s reasoning clarifies that a misleading use on any one medium is sufficient. As to why the context on that same medium—say the label or the accompanying description—should be ignored, the Court concludes that forgiving a misleading use, provided it is accompanied by correct information, is undesirable, especially when the provision is directed at protecting both consumers as well as GI producers against unfair competition. The interests of the latter appear to tip the scales. The phrase ‘any other ... indication’ is construed broadly, to include ‘information that may be found in any form whatsoever on the description, presentation or labelling of the product concerned, inter alia in the form of words, an image or a container capable of providing [relevant] information’ relating to provenance or quality.²²⁷

Finally, Article 13(1)(d) is ‘intended to cover any conduct not already covered by the other provisions ... and thus to tighten the system of protection for registered names’.²²⁸ Its purpose is to help GIs ‘provide consumers with clear information on the origin and properties of the product, so as to enable them to make more informed purchasing choices, and to prevent practices which may mislead them’.²²⁹ Given the open-ended nature of the expression ‘any other practice’, it can encompass reproducing the shape or appearance of the product, where that is liable to mislead consumers. However, given that GI protection cannot act as an impediment to the adoption of manufacturing techniques, the feature adopted by the defendant will have to constitute ‘a baseline characteristic which is particularly distinctive’ of the GI product, such that consumers are misled into believing the product is made by an authorized GI user.²³⁰ Significantly, the Court noted that all relevant factors must be considered, ‘including the way in which the products in question are presented to the public and marketed and the factual context’, endorsing the Advocate-General’s reasoning that for this provision, unlike Article 13(1)(c), the context *can* be taken into account to assess the risk of consumers being misled.²³¹ Thus, clarificatory information on product labels or packaging can be raised defensively.

p. 1236 3.5.3 Conflicts with Trade Marks

As noted earlier, prior trade marks can be the basis for opposing a GI registration in certain circumstances under Articles 6(4) and 10(1)(b), as well as Article 10(1)(c). Correspondingly, under Article 14(1), prior registered GIs are the basis for refusing ‘the registration of a trade mark the use of which would contravene Article 13(1) and which relates to a product of the same type’. This obligation is reflected in the absolute grounds for refusal in EU trade mark law, where registries examine this *ex officio*.²³² It is also found in UK trade mark law.²³³ At the EU level, a prior GI also constitutes the basis for a relative grounds opposition.²³⁴ The corresponding relative ground is again found in UK trade mark law.²³⁵

By way of an example, an application for EMILIANA was unsuccessfully challenged on the basis of evoking a prior wine PGI Emilia.²³⁶ The opponent argued that the consumer vantage point for assessing evocation included not just the average wine consumer but also more sophisticated purchasers within the supply chain (specialized publics) who would be more likely to make a mental association. This was rejected on the basis that specialist consumers would have greater information and awareness of the market, making an unequivocal mental association with the PGI less likely.²³⁷ Conceptual proximity was also dismissed on the

basis that Emilia would primarily reference a girl's name to the average British wine consumer, when viewed in isolation from the underlying goods and services, which mirrored the approach in trade mark law. In relation to the argument that the PGI Emilia lacked a reputation in the United Kingdom, the tribunal concluded that while the absence of a reputation did not prevent an evocation claim—it was not a threshold requirement—‘it would be wrong for the law to turn its back on the factual reality and adopt a notional assessment’.²³⁸ Reputation (or its absence) should therefore be given some weight when assessing the mental link. Interestingly, unlike the harmonized EU regime with its notional or hypothetical average European consumer approach, at the national level the reputation of the GI is once again relevant. If British consumers are not familiar with the GI, the trade mark application is unlikely to evoke it. There will simply be no mental link with an unknown GI within the national context. The reasoning that consumers in some other member state may make that link, under a harmonized system, is no longer applicable at the national level. By contrast, an application for PAWSECCO in relation to non-alcoholic pet treats for pets was successfully opposed, inter alia on the basis of the prior PDO Prosecco, a well-known sparkling wine, being consciously evoked.²³⁹ So was an application for NOSECCO, for non-alcoholic sparkling wines, on a similar basis.²⁴⁰

Notes

¹ D. Goodman, E. Melanie DuPuis, and M. Goodman, *Alternative Food Networks: Knowledge, Practice, and Politics* (2011).

² WIPO, *Geographical Indications: An Introduction* (2017), 28. *Sui generis* is a Latin expression, literally meaning of its own kind/genus or unique in its characteristics. The expression refers to an entity or concept that could not be included in a wider concept.

³ E. Barham, ‘“Translating Terroir” Revisited: The Global Challenge of French AOC Labeling’, in Gangjee (2016), 46; cf. M. Ferrari, ‘The Narratives of Geographical Indications’ (2014) 10 *Int J of Law in Context* 222.

⁴ Gangjee (2012), ch. 3; A. Stanziani, ‘French Collective Wine Branding in the Nineteenth–Twentieth Centuries’ in Gangjee (2016), 13; G. Teil, ‘Protecting Appellations of Origin: One Hundred Years of Efforts and Debates’, in W. van Caenegem and J. Cleary (eds), *The Importance of Place: Geographical Indications as a Tool for Local and Regional Development* (2017), 148.

⁵ For an entertaining account, see C. Campbell, *Phylloxera: How Wine was Saved for the World* (2004).

⁶ Zappalaglio (2021), 29–69.

⁷ DG AGRI, *Working Document on International Protection of EU Geographical Indications: Objectives, Outcome and Challenges* (25 June 2012), 11 (‘In the new generation of FTAs a satisfactory GI Chapter is a “must have” for the EU’); T. Engelhardt, ‘Geographical Indications Under Recent EU Trade Agreements’ (2015) 46 *IIC* 781. These free trade agreements have largely been rolled over in the United Kingdom: P. Johnson, *Intellectual Property, Free Trade Agreements and the United Kingdom* (2021), 125–34.

⁸ For an overview, see D. Gangjee, 'Sui Generis or Independent Geographical Indications Protection', in Calboli and Ginsburg, 256. National GI laws can be accessed via the WTO e-TRIPS database: <https://e-trips.wto.org/En/Search> <<https://e-trips.wto.org/En/Search>>. See also WIPO, 'Compilation of the Replies to Questionnaire I on the National and Regional Systems that Can Provide a Certain Protection to Geographical Indications' 25 Feb 2019 (SCT/40/5) ('WIPO Compilation of Replies (SCT/40/5)').

⁹ For extended passing off, see Chapter 34, section 2; see also D. Gangjee, 'Spanish Champagne: An Unfair Competition Approach to GI Protection', in Dreyfuss and Ginsburg (2014), 105; K. Weatherall, 'Does the Unfair Competition Approach to Geographical Indications of Origin Have a Future?', in Calboli and Ginsburg, 271.

¹⁰ D. Gervais, 'A Cognac after Spanish Champagne? Geographical Indications as Certification Marks', in Dreyfuss and Ginsburg (2014), 105; D. Harvey, 'Geographical Indications: The United States' Perspective' (2017) 107 *TM Rep* 960; X. Song, 'The Role Played by the Regime of Collective and Certification Marks in the Protection of Geographical Indications—Comparative Study of Law and Practice in France, the EU and China' (2018) 21 *JWIP* 437; P. Zito, 'Australian Laws and Regulations on Regional Branding on Food and Wine Labels: Part 2' (2019) 29 *AIPJ* 127.

¹¹ On retained law, see Chapter 1, section 6.

¹² See <https://www.daera-ni.gov.uk/articles/northern-ireland-geographic-indicationsprotected-food-and-drink-names> <<https://www.daera-ni.gov.uk/articles/northern-ireland-geographic-indicationsprotected-food-and-drink-names>>.

¹³ For a detailed history of international GI protection, see Gangjee (2012); Ricketson (2015), ch. 13. On WIPO's constitutive role in this process, see D. Gangjee, 'Making a Place for Place-Based IP: WIPO and Geographical Indications', in S. Ricketson (ed.), *Research Handbook on the World Intellectual Property Organisation: The First 50 Years and Beyond* (2020), 150. For the continuing influence of international agreements, see M. Lightbourne, 'What's in a Name? The Journey of Geographical Indications from Paris 1883 to Geneva 2015' (2021) 70 *GRUR-Int* 932.

¹⁴ See *Exportur v. LOR and Confiserie du Tech*, Case C-3/91 [1992] 1 ECR 5529, [11]; *Jacques Pistre*, Cases C-321–324/94 [1977] CMLR 565, 587.

¹⁵ D. Higgins, *Brands, Geographical Origin, and the Global Economy: A History from the Nineteenth Century to the Present* (2019).

¹⁶ Gangjee (2012), 28–38.

¹⁷ B. Singer, *Trade Mark Laws of the World and Unfair Trade* (1913), 602–18.

¹⁸ See Chapter 37, section 3.

¹⁹ WIPO, 'Document SCT/6/3 Rev. on Geographical Indications: Historical Background, Nature of Rights, Existing Systems for Protection and Obtaining Protection in Other Countries', 2 Apr. 2002 (SCT/8/4), [11]–[19].

²⁰ Lisbon Agreement, Art. 2.

²¹ The register is available via the Lisbon Express database: <https://www.wipo.int/ipdl-lisbon/struct-search> <<https://www.wipo.int/ipdl-lisbon/struct-search>>.

²² Gangjee (2012), 157–76.

²³ Lisbon Agreement, Art. 3.

- ²⁴ Lisbon Agreement, Art. 6 (once registered, the appellation ‘cannot, in [the] country [of the dispute], be deemed to have become generic’ so long as it is protected in the country of origin).
- ²⁵ ‘Report adopted by the Committee of Experts’ 15 Nov. 1974 (TAO/I/8), [45].
- ²⁶ Geneva Act of the Lisbon Agreement on Appellations of Origin and Geographical Indications, 20 May 2015 (LI/DC/19) (‘Geneva Act’). The Act entered into force from 26 Feb. 2020.
- ²⁷ Working Group on the Development of the Lisbon System, ‘Summary by the Chair’ 20 Mar. 2009 (LI/WG/DEV/1/3), [20].
- ²⁸ D. Gervais, ‘The Lisbon Agreement’s Misunderstood Potential’ (2009) 1 *WIPO Journal* 87.
- ²⁹ Geneva Act, Art. 2(1).
- ³⁰ *Ibid.*
- ³¹ Geneva Act, Art. 5, provided the national law of the contracting party allows it.
- ³² Geneva Act, Arts 9–11.
- ³³ Geneva Act, Art. 12.
- ³⁴ Lisbon Notification No. 42, Accession by the European Union.
- ³⁵ For background, see D. Gervais, ‘Irreconcilable Differences? The Geneva Act of the Lisbon Agreement and the Common Law’ (2015) 53 *Hous L Rev* 339; M. Geuze, ‘Protecting Geographical-Origin-Brands Abroad: The Geneva Act of the Lisbon Agreement’, in W. van Caenegem and J. Cleary (eds), *The Importance of Place: Geographical Indications as a Tool for Local and Regional Development* (2017), 3; A. Micara, ‘The Geneva Act of the Lisbon Agreement for the Protection of Appellations of Origin and Their International Registration: An Assessment of a Controversial Agreement’ (2016) 47 *IIC* 673; C. Musiza, ‘A Pathway to International Registration for African Geographical Indications under the Geneva Act: The Case for Oku White Honey’ (2021) 16 *JIPLP* 394.
- ³⁶ Agreement on Trade-Related Aspects of Intellectual Property Rights, Apr. 15, 1994, Marrakesh Agreement Establishing the World Trade Organization, Annex 1C, 1869 *UNTS* 299, 33 *ILM* 1197 (1994). Several TRIPS GI provisions were clarified by WTO panel reports in *US v. European Communities*, WT/DS174; *Australia v. European Communities*, WT/DS290. See M. Handler, ‘The WTO Geographical Indications Dispute’ (2006) 69 *MLR* 70.
- ³⁷ TRIPS, Art. 22(1). See A. Zappalaglio, ‘Getting Art 22(1) TRIPS Right: A Commentary on the Definition of “Geographical Indication” from an EU Perspective with a Focus on Wines’ (2022) 23 *J World Invest Trade* 179.
- ³⁸ The draft text is annexed to the TRIPS Council, ‘Report by the Chairman to the Trade Negotiations Committee’ 21 Apr. 2011 (TN/IP/21). For background, see J. Cortes Martin, ‘International Protection of Geographical Indications: The WTO Multilateral Register Negotiations’, in Gangjee (2016); D. Friedmann, ‘The Rational Construction of a Universal Register for Distinctive Wines and Spirits GIs against Dilution’ (2022) 25 *JWIP* 106.
- ³⁹ WTO Ministerial Conference, *Ministerial Declaration* (20 Nov. 2001) WT/MIN(01)/DEC/1, [18]. See M. Handler, ‘Rethinking GI Extension’, in Gangjee (2016); J. Hughes, ‘Champagne, Feta, and Bourbon—the Spirited Debate about Geographical Indications’ (2006) 58 *Hastings Law J* 299; F. Frantz, ‘Twenty Years of TRIPS, Twenty Years of Debate: The Extension of High Level Protection of Geographical Indications—Arguments, State of Negotiations and Prospects’ (2016) 21 *Ann Surv Int’l & Comp L*, Art. 7.

- ⁴⁰ H. Moir, 'Understanding EU Trade Policy on Geographical Indications' (2017) 51 *JWT* 1021; L. Sunner, 'How the European Union is Expanding the Protection Levels Afforded to Geographical Indications as Part of its Global Trade Policy' (2021) 16 *JIPLP* 341.
- ⁴¹ See P. Johnson, *Intellectual Property, Free Trade Agreements and the United Kingdom*, 125–34. See also A. Moroni, 'New Generation of Free Trade Agreements: Towards "International" European Geographical Indications' (2017) 8 *Geo Mason J Int'l Comm Law* 286.
- ⁴² S. Frankel, 'Geographical Indications and Mega-Regional Trade Agreements and Negotiations', in Calboli and Ng-Loy (2017), 147.
- ⁴³ AND-International et al., *Study on Economic Value of EU Quality Schemes, Geographical Indications (GIs) and Traditional Specialities Guaranteed (TSGs)* (European Union, 2021). On the legal implementation, see M. Omachi, 'A Tale of Two Approaches: Analysis of Responses to EU's FTA Initiatives on Geographical Indications (GIs)' (2019) 18 *Chi-Kent J IP* 153.
- ⁴⁴ DEFRA, *Consultation on Establishing UK Geographical Indications (GI) Schemes after EU Exit* (Oct. 2018), 5.
- ⁴⁵ *European Commission v. Council of the European Union*, Case C-389/15, EU:C:2017:798 (Grand Chamber), [15].
- ⁴⁶ In the EU a fifth regime appears imminent, with the Commission proposing a Regulation for the protection of non-agricultural products, including crafts and textiles: Proposal for a Regulation of the European Parliament and of the Council on geographical indication protection for craft and industrial products and amending Regulations (EU) 2017/1001 and (EU) 2019/1753 of the European Parliament and of the Council and Council Decision (EU) 2019/1754, COM(2022) 174 final.
- ⁴⁷ Regulation No. 1151/2012 of the European Parliament and of the Council of 21 November 2012 on Quality Schemes for Agricultural Products and Foodstuffs [2012] *OJ L* 323/1 ('Quality Schemes Regulation'). This has been retained in Great Britain with some amendments.
- ⁴⁸ Regulation (EU) No. 1308/2013 of the European Parliament and of the Council of 17 December 2013 establishing a common organisation of the markets in agricultural products [2013] *OJ L* 347/671 ('Wine Regulation'). This has been retained in Great Britain with some amendments.
- ⁴⁹ Regulation (EU) No.251/2014 of the European Parliament and of the Council of 26 February 2014 on the definition, description, presentation, labelling and the protection of geographical indications of aromatised wine products [2014] *OJ L* 84/14 ('Aromatised Wine Regulation'). This has been retained in Great Britain with some amendments.
- ⁵⁰ Regulation (EU) 2019/787 of the European Parliament and of the Council of 17 April 2019 on the definition, description, presentation and labelling of spirit drinks, the use of the names of spirit drinks in the presentation and labelling of other foodstuffs, the protection of geographical indications for spirit drinks, the use of ethyl alcohol and distillates of agricultural origin in alcoholic beverages [2019] *OJ L* 130/1 ('Spirits Regulation'). This has been retained in Great Britain with some amendments.
- ⁵¹ V. Mantrov, *EU Law on Indications of Geographical Origin: Theory and Practice* (2014) 113–38; Zappalaglio (2021), 127–8.
- ⁵² *Commission v. Germany*, Case C-12/74 [1975] *ECR* 181, [7].
- ⁵³ *Exportur v. LOR and Confiserie du Tech*, Case C-3/91 [1992] 1 *ECR I*–5529, [28].

⁵⁴ Recital 7 of Council Regulation (EEC) No. 2081/92 of 14 July 1992 on the protection of geographical indications and designations of origin for agricultural products and foodstuffs [1992] *OJ L* 208/1 ('Regulation 2081/92').

⁵⁵ *Ibid.*, Recital 2; see also *S v. EA*, Case C-367/17, EU:C:2018:1025, [24]. The influence of CAP reforms is outlined in greater detail in J. E. Mansuy, *Geographical Indications and the EU Legal and Policy Discourse: A Pursuit of Legitimacy?* (PhD Dissertation, Warwick, 2021), 76–84.

⁵⁶ O. Deselnicu et al., 'A Meta-Analysis of Geographical Indication Food Valuation Studies: What Drives the Premium for Origin-Based Labels?' (2013) 38 *J Agric Resour Econ* 204.

⁵⁷ See e.g. *Belgium v. Spain*, Case C-388/95 [2000] *ECR I*-3123, [54], where the Court declared that '[d]esignations of origin fall within the scope of industrial and commercial property rights'; *Caseificio Cirigliana v. Ministero delle Politiche agricole, alimentari e forestali*, Case C-569/18, EU:C:2019:873, [36] ('The applicable rules protect those entitled to use [designations of origin] against improper use ... by third parties seeking to profit from the reputation which they have acquired'); *European Commission v. Council of the European Union*, Case C-389/15, EU:C:2017:798 (Grand Chamber), [56] (affirming that the Paris Convention recognizes indications of source and appellations of origin as a form of industrial property).

⁵⁸ *Consorzio del Prosciutto di Parma v. Asda Stores* [2002] *FSR* 3 (HL), 38, [6].

⁵⁹ *Assica v. Associazione fra produttori per la tutela del 'Salame Felino'*, Case C-35/13, EU:C:2014:306, [28]–[34]; *Comité Interprofessionnel du Vin de Champagne v. GB*, Case C-783/19, EU:C:2021:713, [27] (hereafter *Champanillo*).

⁶⁰ *Fage v. Chobani* [2014] *EWCA Civ* 5, [80]–[88] (however 'Greek yoghurt' did not in fact qualify for protection under the Quality Schemes Regulation, so the tort of passing off remained viable as an enforcement option in the United Kingdom).

⁶¹ *EUIPO v. Instituto dos Vinhos do Douro e do Porto*, Case C-56/16 P, EU:C:2017:693, [100]–[103] (hereafter, *Port Charlotte*).

⁶² *Budějovický Budvar v. Rudolf Ammersin*, Case C-216/01 [2005] *CMLR* 56.

⁶³ In other words, where there is no causal link between provenance and quality or reputation: *Schutzverband gegen Unwesen in der Wirtschaft v. Warsteiner Brauerei Haus Cramer*, Case C-312/98 [2000] *ECR I*-9187, [40]–[47].

⁶⁴ Quality Schemes Regulation, Recital 1.

⁶⁵ *Ibid.*, Recital 2.

⁶⁶ *Ibid.*, Recital 3.

⁶⁷ *Ibid.*, Recital 4.

⁶⁸ *Ibid.*, Art. 1. This is reiterated in Art. 4, which refers to the objectives of GI protection as 'securing fair returns' for producers, ensuring 'uniform protection' of place names 'as an intellectual property right', and 'providing clear information on the value-adding attributes of the product to consumers'.

⁶⁹ *Consorzio del Prosciutto di Parma v. Asda Stores*, Case C-108/01 [2003] *ECR I*-5121, [64].

⁷⁰ *Germany v. Commission*, Cases C-465/02 and C-466/02 [2005] *ECR I*-09115, [AG27] (AG Colomer) ('Protection entails a reward for the effort invested by the multiple holder[s] of the registered name, who, by manufacturing the product concerned in a particular manner, ensures that the product acquires a reputation worthy of protection under that form of industrial property right').

- ⁷¹ *European Commission v. Council of the European Union*, Case C-389/15, EU:C:2017:604, [AG77] (AG Bot).
- ⁷² In the sense of providing products or services that are of broader societal benefit: G. Belletti, A. Marescotti, and J.-M. Touzard, 'Geographical Indications, Public Goods and Sustainable Development: The Roles of Actors' Strategies and Public Policies' (2017) 98 *World Dev* 45.
- ⁷³ Proposal for a Regulation of the European Parliament and of the Council on European Union geographical indications for wine, spirit drinks and agricultural products, and quality schemes for agricultural products, COM(2022) 134 final/2, 1 ('Proposal to Review the GI System, COM(2022) 134 final/2').
- ⁷⁴ Commission Impact Assessment Accompanying the Proposal for a Regulation of the European Parliament and of the Council on European Union geographical indications for wine, spirit drinks and agricultural products, and quality schemes for agricultural products SWD(2022) 135 final, 41 ('GIs have well-known spill over effects extending into tourism, downstream processing as well as cultural events').
- ⁷⁵ Communication from the Commission, *A Farm to Fork Strategy for a Fair, Healthy and Environmentally-Friendly Food System*, COM/2020/381 final, [2.3].
- ⁷⁶ *Viiniverla Oy v. Sosiaali-ja terveystalaja lupa-ja valvontavirasto*, Case C-75/15, EU:C:2016:35, [23]–[24] (hereafter *Calvados*); *Syndicat interprofessionnel de defense du fromage Morbier v. Société Fromagère du Livradois*, Case C-490/19, EU:C:2020:1043, [34]–[35] (hereafter *Morbier*).
- ⁷⁷ X. Wang, 'Absolute Protection for Geographical Indications: Protectionism or Justified Rights?' (2018) 8 *QMJP* 73; cf. M. Handler, 'Rethinking GI Extension', in Gangjee (2016), 146.
- ⁷⁸ AND International et al., *Evaluation Support Study on Geographical Indications and Traditional Specialities Guaranteed Protected in the EU* (European Commission, 2021) ('Evaluation Support Study (2021)') (concluding that the overall objectives of the schemes are achieved but there continues to be low awareness of the schemes by consumers in some member states, thereby undermining the certification function, and some weaknesses of product inspection controls at the downstream stages of the value chain); A. Török et al., 'Understanding the Real-World Impact of Geographical Indications: A Critical Review of the Empirical Economic Literature' (2020) 12 *Sustainability* 9434; A.-I. Glogovețan et al., 'Consumer Perception and Understanding of European Union Quality Schemes: A Systematic Literature Review' (2022) 14 *Sustainability* 1667.
- ⁷⁹ D. Gangjee, 'Proving Provenance: Geographical Indications Certification and its Ambiguities' (2017) 98 *World Dev* 12; E. Reisman, 'Protecting Provenance, Abandoning Agriculture? Heritage Products, Industrial Ideals and the Uprooting of a Spanish Turrón' (2022) 89 *J Rural Stud* 45.
- ⁸⁰ H. Moir, 'Geographical Indications: An Assessment of EU Treaty Demands', in A. Elijah et al. (eds), *Australia, the European Union and the New Trade Agenda* (2017), 121, 122.
- ⁸¹ Gangjee (2012), 215–16.
- ⁸² WIPO Compilation of Replies (SCT/40/5), Annex, 18–22.
- ⁸³ Examples include Darjeeling for tea (Serial no. 1), Pokkali for rice (Serial no. 86), and Banaras for saris (Serial no. 193). See: <https://ipindia.gov.in/registered-gls.htm> <<https://ipindia.gov.in/registered-gls.htm>>.
- ⁸⁴ In the EU, examples include the Parma Ducal Crown (EUTM No. 001116201) and the heraldic image for Bayerisches Bier (EUTM No. 000226589).

- ⁸⁵ The product specification template asks specifically for a ‘product name’ in words. See <https://www.gov.uk/government/publications/apply-for-pdo-or-pgi-protection-for-a-food-or-drink-name-in-the-uk> <<https://www.gov.uk/government/publications/apply-for-pdo-or-pgi-protection-for-a-food-or-drink-name-in-the-uk>>.
- ⁸⁶ See section 3.5.
- ⁸⁷ Quality Schemes Regulation, Art. 17. See A. Tosato, ‘The Protection of Traditional Foods in the EU: Traditional Specialities Guaranteed’ (2013) 19(4) *Eur Law J* 545.
- ⁸⁸ Quality Schemes Regulation, Art. 18.
- ⁸⁹ Quality Schemes Regulation, Art. 3(3). See also A. Bonadonna et al., ‘The Dark Side of the European Quality Schemes: The Ambiguous Life of the Traditional Specialities Guaranteed’ (2017) 18 *Calitatea* 102.
- ⁹⁰ H. Deacon, ‘Safeguarding the Art of Pizza Making: Parallel Use of the Traditional Specialities Guaranteed Scheme and the UNESCO Intangible Heritage Convention’ (2018) 24 *Int J Cult Prop* 515.
- ⁹¹ Proposal to Review the GI System, COM(2022) 134 final/2, 1. Only 64 TSGs were registered between 1993 and 2021.
- ⁹² Wine Regulation, Art. 112.
- ⁹³ A. Moerland and R. Bhadauria, ‘The Protection of Traditional Terms for Wines in the European Union and Beyond’, in J. Chaisse, F. Simões, and D. Friedmann (eds), *Wine Law and Policy* (2020), 346.
- ⁹⁴ Quality Schemes Reg., Art. 12(3), provides that for products marketed under a PDO or PGI, ‘the Union symbols associated with them *shall* appear on the labeling’ (emphasis added). This is in response to empirical research indicating that the vast majority of EU consumers did not understand the significance of the PDO and PGI logos; European Court of Auditors, *Do the Design and Management of the Geographical Indications Scheme Allow it to Be Effective?* (Special Report No. 11, 2011), 25–33.
- ⁹⁵ See <https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules> <<https://www.gov.uk/guidance/adding-a-logo-to-a-uk-gi-protected-food-or-drink-name-follow-the-rules>>.
- ⁹⁶ Gangjee (2012), 223–30; Zappalagio (2021), ch. 3.
- ⁹⁷ A. Zappalagio, ‘The Debate Between the European Parliament and the Commission on the Definition of Protected Designation of Origin: Why the Parliament Is Right’ (2019) 50 *IIC* 595, 599–600.
- ⁹⁸ *Consorzio Parma v. Asda* [2002] *FSR* 3, [8].
- ⁹⁹ For PDOs there is an exception for raw material consisting of live animals, meat, and milk, contained in Art. 5(3), provided the external production area is also defined and quality controls are in place.
- ¹⁰⁰ M. J. Rippon, ‘Traditional Foods, Territorial Boundaries and the TRIPS Agreement: The Case of the Melton Mowbray Pork Pie’ (2013) 16 *JWIP* 262.
- ¹⁰¹ See, respectively, File No. PDO-GB-0277 and File No. PDO-IT-0067, accessed via the EU’s e-Ambrosia GI database at <https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/> <<https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/>>.
- ¹⁰² A. Zappalagio et al., *Study on the Functioning of the EU GI System* (Max Planck Institute for Innovation and Competition, 2022), 17 (‘Max Planck Study (2022)’) (PGI registrations under the Quality Schemes Regulation constituted 67.39 per cent of total GI registrations).

- ¹⁰³ I. Calboli, 'In *Territorio Veritas*: Bringing Geographical Coherence in the Definition of Geographical Indications of Origin under TRIPs' (2014) 6 *WIPOJ* 57.
- ¹⁰⁴ *Bavaria v. Bayerischer Brauerbund*, Case C-343/07 [2009] *ECR* I-5491, [2009] *ETMR* (61) 1122, [95]–[98].
- ¹⁰⁵ D. Gangjee, 'From Geography to History: Geographical Indications and the Reputational Link', in Calboli and Ng-Loy (2017), 36.
- ¹⁰⁶ Recital 15 of Reg. 1151/2012.
- ¹⁰⁷ See <https://www.gov.uk/guidance/protect-a-geographical-food-or-drink-name-in-the-uk#product-classes-eligible-for-a-pfn> <<https://www.gov.uk/guidance/protect-a-geographical-food-or-drink-name-in-the-uk#product-classes-eligible-for-a-pfn>>.
- ¹⁰⁸ H. Zheng, 'A Unique Type of Cocktail: Protection of Geographical Indications in China', in Calboli and Ng-Loy (2017), 380; Y. Fang, 'Reforming the Multi-Agency System: A Path to Better Chinese GI Protection', 16 Apr. 2019, Berkley Technology Law Journal Blog, at <http://btlj.org/2019/04/reforming-the-multi-agency-system-a-path-to-better-chinese-gi-protection/> <<http://btlj.org/2019/04/reforming-the-multi-agency-system-a-path-to-better-chinese-gi-protection/>>.
- ¹⁰⁹ See, respectively, the American Viticultural Areas scheme at <https://www.ttb.gov/wine/american-viticultural-area-ava> <<https://www.ttb.gov/wine/american-viticultural-area-ava>>; the Australian Wine GIs register at <https://www.wineaustralia.com/labelling/register-of-protected-gis-and-other-terms> <<https://www.wineaustralia.com/labelling/register-of-protected-gis-and-other-terms>>.
- ¹¹⁰ WIPO, *World Intellectual Property Indicators 2021* (2021), 191.
- ¹¹¹ See <http://www.ipindia.nic.in/writereaddata/images/pdf/classification-of-goods.pdf> <<http://www.ipindia.nic.in/writereaddata/images/pdf/classification-of-goods.pdf>>.
- ¹¹² These are the issues confronting the EU as it is on the cusp of accommodating non-agricultural GIs, including crafts and textiles: see generally D. Marie-Vivien, 'Do Geographical Indications for Handicrafts Deserve a Special Regime? Insights from Worldwide Law and Practice', in W. van Caenegem and J. Cleary (eds), *The Importance of Place: Geographical Indications as a Tool for Local and Regional Development* (2017), 221; P. Covarrubia, 'Geographical Indications of Traditional Handicrafts: A Cultural Element in a Predominantly Economic Activity' (2019) 50 *IIC* 441.
- ¹¹³ Under the EU system, new applications for PDOs and PGIs are assessed at both the member state (substantively) and EU (formally) levels.
- ¹¹⁴ Quality Schemes Reg., Art. 3(2).
- ¹¹⁵ *Ibid.*, Art. 45.
- ¹¹⁶ *Ibid.*, Art. 49(1)(a)–(b). Notably, the provision does not mention processors.
- ¹¹⁷ *Ibid.*, Art. 49(1).
- ¹¹⁸ *Ibid.*
- ¹¹⁹ Evaluation Support Study (2021), 59–62.
- ¹²⁰ EU law does not prescribe any thresholds, but these can be set at the national level.

¹²¹ See <https://www.gov.uk/guidance/protect-a-geographical-food-or-drink-name-in-the-uk#who-can-apply-for-a-pfn> <<https://www.gov.uk/guidance/protect-a-geographical-food-or-drink-name-in-the-uk#who-can-apply-for-a-pfn>>.

¹²² Evaluation Support Study (2021), 60.

¹²³ See WTO, 'Review Under Article 24.2 of the Application of the Provisions of the Section of the TRIPS Agreement on Geographical Indications: Response to the Checklist of Questions—Switzerland', 11 Feb. 2019 (IP/C/W/117/Add.13/Rev.1/Corr.1), 9–10. For background, see B. Abegg, 'The Geographical Trade Mark: A Swiss Innovation Worth Copying?' (2018) 49 *IIC* 565.

¹²⁴ D. Marie-Vivien et al., 'Controversies around Geographical Indications: Are Democracy and Representativeness the Solution?' (2019) 121 *Br Food J* 2995; B. Pick and D. Marie-Vivien, 'Representativeness in Geographical Indications: A Comparison between the State-Driven and Producer-Driven Systems in Vietnam and France' (2021) 13 *Sustainability* 5056.

¹²⁵ See <https://www.gov.uk/guidance/protected-geographical-food-and-drink-names-uk-gi-schemes> <<https://www.gov.uk/guidance/protected-geographical-food-and-drink-names-uk-gi-schemes>>. Under the EU scheme there are different national authorities for each member state. The work of DEFRA is supported by the Scottish Government, the Welsh Government, and the Department of Agriculture, Environment and Rural Affairs (DAERA) for Northern Ireland.

¹²⁶ Quality Schemes Reg., Recital 58.

¹²⁷ *Ibid.*, Art. 49(3).

¹²⁸ *Ibid.*, Arts 49(3), 51(1). See *Hengstenberg v. Spreewaldverein*, Case C-53/20, EU:C:2021:279 (confirming (i) that the same 'legitimate interests' standing requirement applies to oppositions to initial applications as well as subsequent amendments; and (ii) any natural or legal person affected economically, actually or potentially—provided that such an effect is not entirely implausible—by the amendments may establish their legitimate interest; they do not necessarily have to be producers established in the region or trading in comparable products).

¹²⁹ *Northern Foods v. Department for the Environment, Food and Rural Affairs* [2005] *EWHC* 2971 (Admin), discussed in D. Gangjee, 'Melton Mowbray and the GI Pie in the Sky: Exploring Cartographies of Protection' [2006] *IPQ* 291; *Carl Kuhne v. Jutro Konservenfabrik*, Case C-269/99 [2001] *ECR I*-9517 (the decision as to where boundaries were to be drawn in relation to the PGI Spreewald gherkins was not a matter for the Court of Justice, but for the German courts).

¹³⁰ Max Planck Study (2022), 16.

¹³¹ In Great Britain, the two layers of examination have been collapsed into a single domestic layer, removing all references to the second stage of examination by the Commission.

¹³² Quality Schemes Reg., Art. 49(4).

¹³³ Quality Schemes Reg., Art. 50(1) (i.e. the particulars set out in Art. 7).

¹³⁴ Quality Schemes Reg., Art. 50(2).

¹³⁵ Quality Schemes Reg., Art. 51(1). Third parties are able to object to the registration on the basis of criteria in Art. 10.

¹³⁶ Quality Schemes Reg., Recitals 20, 26, and Art. 11(1). The EU's e-Ambrosia GI database is at: [https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/](https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/<https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/>) [<https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/>](https://ec.europa.eu/info/food-farming-fisheries/food-safety-and-quality/certification/quality-labels/geographical-indications-register/>). An additional database—Giview—managed by the EUIPO contains both registered GIs and those protected in the EU under international agreements: <https://www.tmdn.org/giview/> [<https://www.tmdn.org/giview/>](https://www.tmdn.org/giview/>).

¹³⁷ Quality Schemes Reg., Art. 49(5). See also Art. 37(2) (verification of compliance with the specification will be carried out in that third country); Art. 51(1) (oppositions possible for those with a legitimate interest in that third country).

¹³⁸ Quality Schemes Reg., Arts 7, 8. In the EU, this single document is published in the *Official Journal* and when the national authority is passing on the application to the Commission for evaluation, it adds a declaration to the dossier that it believes the application qualifies for protection. See Commission Implementing Regulation (EU) No. 668/2014 of 13 June 2014 laying down rules for the application of Regulation (EU) No. 1151/2012 [2014] *OJ L* 179/36 and Quality Schemes Reg., Art. 8(2).

¹³⁹ *Consorzio del Prosciutto di Parma v. Asda*, Case C-108/01 [2003] *ECR I*-5121, [47].

¹⁴⁰ Quality Schemes Reg., Arts 35–40. For an operational overview, see Evaluation Support Study (2021), 49–58.

¹⁴¹ Additional guidance is provided in Commission Implementing Regulation (EU) No. 668/2014 of 13 June 2014 laying down rules for the application of Regulation (EU) No. 1151/2012 of the European Parliament and of the Council on quality schemes for agricultural products and foodstuffs [2014] *OJ L* 179/36.

¹⁴² S. Xinze, 'A Closer Look at the Elephant in the Room: The Distinctiveness of Geographical Indications' (2021) 11 *QMJP* 25. For a comparison with acquired distinctiveness in trade mark law, see Chapter 37, section 3.5.

¹⁴³ The one exception is generic use, considered in section 3.4.3.

¹⁴⁴ For the scope of GI protection, see section 3.5. For reputed marks being protected against 'dilution', see Chapter 38, section 2.4.

¹⁴⁵ *Consorzio del Prosciutto di Parma v. Asda*, Case C-108/01 [2003] *ECR I*-5121. However in each of these cases, where the (slicing or grating) requirement had not been published and thus suitably publicized, it could not be relied on against third parties.

¹⁴⁶ *Ravil v. Bellon Import and Biraghi*, Case C-469/00 [2003] *ECR I*-5053.

¹⁴⁷ *S v. EA*, Case C-367/17, EU:C:2018:1025.

¹⁴⁸ *Black Forest Ham II* (2021) 52 *IIC* 1437.

¹⁴⁹ Max Planck Study (2022), 38 (by 2019, around 21 per cent of PDOs and 12 per cent of PGIs had amended their specifications in relation to the method of production). X. Quiñones Ruiz et al., 'How are Food Geographical Indications Evolving?—An Analysis of EU GI Amendments' (2018) 120 *Br Food J* 1876. On the extent to which judicial review of amendments at the national level is possible after the Commission has approved the amendment, see *GAEC Jeanningros v. INAO*, Case C-785/18, EU:C:2020:46.

¹⁵⁰ L. F. Clark and W. A. Kerr, 'Climate Change and *Terroir*: The Challenge of Adapting Geographical Indications' (2017) 20 *JWIP* 88; K. De Master et al., 'Terroir in Transition: Environmental Change in the Wisconsin Artisanal Cheese and New England Oyster Sectors' (2019) 11 *Sustainability* 2969.

¹⁵¹ WA, Arts 54(2) and 55 (without any re-examination, fees, or formalities).

¹⁵² In the EU system, these can be filed before the national registrar within the country of origin or before the European Commission.

¹⁵³ It is not expressly stated these grounds apply at the national stage under the EU scheme.

¹⁵⁴ E. Bonadio and M. Contardi, 'The GI Prosecco Battle between Italy and Australia: Some Lessons from the History and Geography of the Most Famous Italian Wine' (2022) 23 *JWIT* 260.

¹⁵⁵ *Denmark v. Commission*, Cases C-289/96, C-293/96, and C-299/96 [1999] *ECR* I-1541, [36]. The registration of 'Feta', which had been granted to Greece under Regulation (EEC) No. 1107/96, was annulled because the Commission had not taken account of all of the relevant factors when deciding whether the name should be registered. In particular, it seemed to prioritize Feta's status in its country of origin. However Feta was reassessed and reinstated as a PDO by the Commission in 2002. This decision was upheld in *Germany v. Commission*, Cases C-465/02 and C-466/02 [2005] *ECR* I-09115 (Feta was not generic). For context, see D. Gangjee, 'Say Cheese: A Sharper Image of Generic Use Through the Lens of Feta' [2007] *EIPR* 172.

¹⁵⁶ This indicative, but ultimately inconclusive, list was contained in European Commission, *Proposal for a Council Decision Drawing up a Non-exhaustive, Indicative List of the Names of Agricultural Products and Foodstuffs Regarded as Being Generic, as Provided for in Article 3(3) Of Council Regulation No. 2081/92* (Mar. 1996) COM(1996) 38 final. However, Gouda Holland and Edam Holland are now PGIs in both Great Britain and the EU.

¹⁵⁷ File No. PDO-GB-0279.

¹⁵⁸ Recital 23 of Commission Regulation (EC) No. 1829/2002 of 14 October 2002 Amending the Annex to Regulation (EC) No. 1107/96 with Regard to the Name Feta [2002] *OJ L* 277/10. See also *Bavaria v. Bayerischer Brauerbund*, Case C-343/07 [2009] *ECR* I-5491, [2009] *ETMR* (61) 1122, [106]–[107] (generic status is achieved when geographical use 'has disappeared').

¹⁵⁹ For a comparative analysis of factors across jurisdictions, see D. Gangjee, 'Genericide: The Death of a Geographical Indication', in Gangjee (2016).

¹⁶⁰ Quality Schemes Reg., Art. 41(2). Art. 41(1) adds that the Regulation shall not affect the use of terms that are generic in the Union, even if the generic term is part of a name that is protected.

¹⁶¹ For a consideration of the type of evidence that may be used, see *Consorzio per la tutela del formaggio Grana Padano v. OHIM*, Case T-291/03 [2008] *ETMR* (3) 57; ('grana' was not generic); *Germany v. Commission*, Cases C-465/02 and C-466/02 [2005] *ECR* I-09115.

¹⁶² Quality Schemes Reg., Art. 41(1).

¹⁶³ Quality Schemes Reg., Art. 54.

¹⁶⁴ Max Planck Study (2022), 64.

¹⁶⁵ Quality Schemes Reg., Art. 12(1).

¹⁶⁶ *Ibid.* See also Art. 46 (any operator complying with the specification must be incorporated within inspection arrangements, without any discriminatory exclusion).

¹⁶⁷ *Ibid.*, Art. 12(3). This requirement is optional for products originating outside Great Britain (or the EU): Art. 12(6).

¹⁶⁸ Evaluation Support Study (2021), 70–7 (confirming the low level of awareness of the meaning of these logos and confusion about the differences between schemes in the EU).

¹⁶⁹ *Comité Interprofessionnel du Vin de Champagne v. Aldi, Galana*, Case C-393/16, EU:C:2017:991, [32] (hereafter *Champagner Sorbet*); *Calvados*, Case C-75/15, EU:C:2016:35, [21] (hereafter *Calvados*).

¹⁷⁰ *Champagner Sorbet*, Case C-393/16, EU:C:2017:991, [31], [33].

¹⁷¹ Quality Schemes Reg., Recital 32.

¹⁷² *Germany v. Commission*, Cases C-465/02 and C-466/02 [2005] ECR I-09115, [AG26]; *Commission v. Germany*, Case C-132/05 [2008] ECR I-957, [AG34] (hereafter *Parmesan*); *Consorzio Tutela Aceto Balsamico di Modena v. BALEMA*, Case C-432/18, EU:C:2019:650, [AG30] (hereafter *Aceto Balsamico*); *Morbier*, Case C-490/19, EU:C:2020:730, [AG36].

¹⁷³ *Morbier*, Case C-490/19, EU:C:2020:1043, [35]. See also section 3.2.

¹⁷⁴ *Budějovický Budvar v. Rudolf Ammersin*, Case C-478/07 [2009] ECR I-7721 (Grand Chamber), [110].

¹⁷⁵ *Bureau national interprofessionnel du Cognac (BNIC) v. Gust. Ranin*, Cases C-4/10 and C-27/10 [2011] ECR I-6131, [46] (hereafter *BNIC*).

¹⁷⁶ See, more specifically, the prohibition against evocation in section 3.5.2.

¹⁷⁷ Quality Schemes Reg., Art. 41 (generic terms can continue to be used, including where it is a part of a protected name); Art. 42 (non-misleading uses of plant or animal variety names permitted).

¹⁷⁸ Quality Schemes Reg., Arts 13(2), 36, and 38. *European Commission v. Kingdom of Denmark*, Case C-159/20, EU:C:2022:198, [AG67].

¹⁷⁹ The Quality Schemes (Agricultural Products and Foodstuffs) Regulations 2018, reg. 12.

¹⁸⁰ EUIPO, *Protection and Control of Geographical Indications for Agricultural Products in the EU Member States* (Dec. 2017), 396.

¹⁸¹ In particular, WA, Art. 54(2), guarantees that EU GIs which have been transposed or cloned into the domestic GI register ‘shall be granted at least the same level of protection under the law of the United Kingdom as’, inter alia, Art. 13 of the Quality Schemes Regulation. How such an infringement claim might be brought in practice remains unclear. It is also unclear the extent to which the Withdrawal Agreement provides continuing obligations in relation to GIs once an agreement like the UK-EU Cooperation Agreement comes into force (see WA, Arts 54(2) and 184), but the Cooperation Agreement only notes the provisions in the Withdrawal Agreement (see Art. 275) and does not create a new regime as was expected (and was included in the draft Agreement).

¹⁸² Quality Schemes Reg., Art. 45(1)(b).

¹⁸³ EUIPO, *Protection and Control of Geographical Indications for Agricultural Products in the EU Member States* (Dec. 2017).

¹⁸⁴ *Aceto Balsamico*, Case C-432/18, EU:C:2019:650, [AG25]; *Fundación Consejo Regulador de la Denominación de Origen Protegida Queso Manchego v. Industrial Quesera Cuquerella*, Case C-614/17, EU:C:2019:344, [27] (hereafter *Queso Manchego*). Setting the train of associations in motion has subsequently been directed towards the destination of unfair advantage, as the evocation case law confirms. Merely triggering associations should never be actionable per se.

¹⁸⁵ *Morbier*, Case C-490/19, EU:C:2020:1043, [24].

¹⁸⁶ *The Scotch Whisky Association v. Michael Klotz*, Case C-44/17, EU:C:2018:415, [32] (hereafter *Glen Buchenbach*).

¹⁸⁷ *Ibid.*, [29], [31].

¹⁸⁸ *Champanillo*, Case C-783/19, EU:C:2021:713, [37]–[42] (‘use’ must be ‘strictly interpreted’ to ensure near-identity of the two signs).

¹⁸⁹ *BNIC*, Cases C-4/10 and C-27/10, [2011] *ECR* I–6131, [55].

¹⁹⁰ *Ibid.*, [54] (spirits were broadly comparable with Cognac).

¹⁹¹ *Champagner Sorbet*, Case C-393/16, EU:C:2017:991, [31], [40]. *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [38], [40].

¹⁹² *Champagner Sorbet*, Case C-393/16, EU:C:2017:991.

¹⁹³ *Morbier*, Case C-490/19, EU:C:2020:1043, [24]–[25].

¹⁹⁴ *Champanillo*, Case C-783/19, EU:C:2021:713. See especially [AG46]–[AG57].

¹⁹⁵ See Chapter 38, section 2.4.3.

¹⁹⁶ *Calvados*, Case C-75/15, EU:C:2016:35, [45]; see also *Queso Manchego*, Case C-614/17, EU:C:2019:344, [35].

¹⁹⁷ *Morbier*, Case C-490/19, EU:C:2020:1043, [26]; *Consorzio Gorgonzola v. Hofmeister*, Case C-87/97 [1999] *ECR* I–1301, [25] (hereafter *Cambozola*).

¹⁹⁸ The reputation of a GI is not a condition for its protection: *Roberto Mengozzi v. EUIPO*, Case T-510/15, EU:T:2017:54, [48]. However, it has been suggested that reputation may make it more likely the protected term is evoked but absence of reputation does not work the other way: *Emilia* (O/54/22) (Johnson AP), [70].

¹⁹⁹ As anyone who has enjoyed a Baby Yoda (Grogu) meme, or any other meme for that matter, can attest to. Associations are a crucial component of cultural transmission, learning, and competing more generally.

²⁰⁰ D. Kahneman, *Thinking Fast and Slow* (2012), ch. 4.

²⁰¹ *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [53].

²⁰² *Queso Manchego*, Case C-614/17, EU:C:2019:344, [31] (emphasis added); see also [20]–[22].

²⁰³ *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [53]–[55].

²⁰⁴ *Ibid.*, [58]–[59]. It is also a likelihood of evocation test since it depends on ‘the presumed reaction of consumers’, [45].

²⁰⁵ *Calvados*, Case C-75/15, EU:C:2016:35, [24]–[28] (formalistically reasoning that *Verlados* used for cider spirits in Finland could still evoke *Calvados* for non-Finnish consumers).

²⁰⁶ *Queso Manchego*, Case C-614/17, EU:C:2019:344, [48]–[49] (identifying Spanish consumers, who were more likely to associate the contested imagery with the PDO *Queso Manchego*).

²⁰⁷ *Port Charlotte*, Case C-56/16P, EU:C:2017:394 (AG Campos Sánchez-Bordona); EU:C:2017:693.

²⁰⁸ *Ibid.*, [111]. The General Court’s factual assessment on this was undisturbed.

²⁰⁹ *Cambozola*, Case C-87/97 [1999] *ECR* I–1301, [26].

²¹⁰ *Ibid.*, [27].

²¹¹ *Ibid.*, [28] On this basis, the defendant's trade mark Cambozola was likely to evoke the PDO Gorgonzola. However, it was ultimately excused by the Austrian national court based on longstanding prior use: *Gorgonzola/Cambozola II* [2002] *GRUR-Int* 445. See also *Queso Manchego*, Case C-614/17, EU:C:2019:11, [AG29] (an innocent or unintentional reference is also relevant under the overall assessment of evocation factors, presumably counting in favour of the defendant).

²¹² *Cambozola*, Case C-87/97 [1999] *ECR I*-1301, [27]; *Port Charlotte*, Case C-56/16P, EU:C:2017:693, [125] (General Court's factual finding on product differences undisturbed).

²¹³ *Parmesan*, Case C-132/05 [2008] *ECR I*-957 (Grand Chamber), [47]-[49].

²¹⁴ *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [49]-[52].

²¹⁵ *Queso Manchego*, Case C-614/17, EU:C:2019:344, [41].

²¹⁶ *Ibid.*, [42].

²¹⁷ *Ibid.*, [22], [40]-[41].

²¹⁸ *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [60].

²¹⁹ Quality Schemes Reg., Recital 26 ('Entry in the register of [PDOs & PGIs] should also provide information to consumers and to those involved in trade').

²²⁰ *Morbier*, Case C-490/19, EU:C:2020:1043.

²²¹ *Ibid.*, [AG33], [AG40].

²²² *Ibid.*, [AG41].

²²³ *Ibid.*, [AG42]-[AG47].

²²⁴ Note the contrast with trade mark law, where mere association between a feature and a product is not sufficient to establish distinctiveness, as per *Kit Kat*. See Chapter 37, section 3.5.

²²⁵ See also *Champagner Sorbet*, Case C-393/16, EU:C:2017:991, [64].

²²⁶ *Glen Buchenbach*, Case C-44/17, EU:C:2018:415, [65]-[71]. By contrast, the Commission had argued that context was relevant in counteracting misleading uses, [63].

²²⁷ *Ibid.*, [66].

²²⁸ *Morbier*, Case C-490/19, EU:C:2020:1043, [29].

²²⁹ *Ibid.*, [34].

²³⁰ *Ibid.*, [36]-[40].

²³¹ *Ibid.*, [39].

²³² EUTMR, Art. 7(1)(j); TMD 2015, Art. 4(i).

²³³ Previously TMA 1994, s. 3(4) (where the mark's use is prohibited by any law other than trade mark law). This has now been replaced by s. 3(4A), which is specifically applicable to GIs.

²³⁴ EUTMR, Art. 8(6).

²³⁵ TMA 1994, s. 5(4)(aa) and (4B).

²³⁶ *EMILIANA*, BL O/054/22.

²³⁷ *Ibid.*, [55]–[58].

²³⁸ *Ibid.*, [63]–[73]. The EUIPO also requires an opposition based on a prior GI under Art. 8(6) EUTMR to be substantiated by evidence—including qualitative evidence relating to reputation—in order to assess any possible exploitation of reputation, or misleading indication or practice: EUIPO Trade Mark Guidelines (2022), Part C, Section 6.

²³⁹ *In re Pawsecco* (O/311/18), [15]–[26]. See also *In re Brosecco*, BL O/341/21.

²⁴⁰ *Les Grands Chais De France SAS v. Consorzio Di Tutela Della Denominazione Di Origine Controllata Prosecco* [2020] EWHC 1633 (Ch).

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